CS2301 Final Exam Study Guide

Crime and Punishment in Ancient Greece and Rome

Markdown source: `study-docs/final_exam_study_guide.md`

April 16, 2026

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This guide is built from the course materials in this folder: lecture scripts, slide decks, study-question files, the assigned PDFs for `Lysias 1` and `In Defense of Marcus Caelius`, and the existing local study-note `.tex/.pdf` files. The lecture scripts are treated as the main teaching source. The exam is cumulative, but the course materials make clear that Weeks 10-12 deserve the heaviest emphasis.

How to use this guide

1. Read the "Core Themes" and "Master Timeline" sections first.
2. Study Weeks 10-12 in detail.
3. Use Weeks 1-4 and 6-8 to make comparisons, define terms, and answer cumulative questions.
4. For reading weeks, memorize both the argument of the text and the professor's interpretation of why the passage matters.
5. Use the study-question answers at the end of each week to self-test.

Guide Legend

This final guide now follows the same general logic as the midterm notes: it is built for exam review, not just broad understanding. The goal is to make the lecture argument, the core concepts, the likely confusions, and the best comparison language visible in one place.

- **Five Things** sections flag the basic identification facts the course keeps returning to: author, title, date, location, and language.
- **Key terms** are the labels, institutions, and legal categories that are most likely to appear in multiple-choice questions or short-definition prompts.
- **MCQ Trap** warnings mark the places where the lecture explicitly says the obvious answer is too simple, too modern, or too literal.
- **Passage dossiers** are there to help you use the readings as evidence. They tell you who is speaking, what the context is, and why the quotation matters for an exam answer.

Use the weekly sections in two passes. On the first pass, read the lecture frame paragraphs and the concept explanations so you understand what the week is trying to prove. On the second pass, use the study questions, passage dossiers, glossary, and trap callouts to test whether you can recognize the right answer quickly under exam conditions.

Reading Corpus and Source Strategy

The course still needs to be studied course-first. That means the lecture scripts remain the primary interpretive frame for this guide, because the final exam is testing the professor's framing of the material, not an abstract encyclopedia of antiquity. At the same time, the app and this guide now treat the assigned readings more explicitly as reading corpora rather than as a few isolated quotations. Where safe public-domain translations exist, the app points you to those source texts and organizes them into section-level passage maps. Where the assigned translation is modern and

the rights position is unclear, the guide keeps to short quotations, paraphrase, and commentary rather than reproducing the whole translation.

The most important practical consequence is that each reading should now be studied in three layers. First, know the Five Things and the large argument of the text. Second, know the internal structure of the reading well enough that you can move from one major section to another without getting lost. Third, know which individual passages the lecture uses as proof and why those passages matter for crime, punishment, rhetoric, character, or state violence. If you study that way, the readings stop being intimidating blocks of text and become usable exam evidence.

The app's reading workspace is designed to support that method. Each reading is now broken into a section map, with clickable passage notes that explain what happens in the passage, why the lecture cares about it, and which weekly arguments it supports. Treat those notes as a bridge between the full reading and the course's preferred interpretation of it.

Core Themes You Should See Everywhere

1. Crime is not the same thing in antiquity and modernity

- Modern systems sharply separate criminal law and civil law, rely on police and public prosecutors, and use imprisonment as a central punishment.
- Ancient Athens and Rome distinguished public and private matters, but the line was much narrower and much stranger. Many things modern people call crimes were handled as private wrongs.
- In classical Athens, homicide was not a public crime in the modern sense. In Rome, many violent acts remained outside a strong state criminal apparatus for a very long time.

2. Self-help matters

- Ancient societies expected households, kin groups, patrons, and private citizens to respond to wrongs.
- Law often regulated self-help rather than replacing it.
- Greek homicide law and Roman patron-client practice both show that the state did not monopolize force in the modern way.

3. Rhetoric shapes criminality

- Ancient law-court speeches do not just prove facts. They construct identities.
- Lysias turns Euphiletos into a modest victim and Eratosthenes into a corrupt seducer.
- Cicero turns Caelius into a charming young hero and Clodia into a scandalous villain.
- Sallust frames Catiline in contradictory ways: criminal, aristocrat, revolutionary, enemy, and heroic commander.

4. Crime is often treated as a matter of character, not just action

- Modern positivist criminology looks for causes of criminality in biology, environment, and psychology.
- Ancient texts often do something similar: they explain crime through ancestry, upbringing, moral weakness, gender, class position, and desire.
- This matters especially in Weeks 11 and 12.

5. Insider versus outsider is a recurring structure

- Criminals are cast as threats to the community.
- Punishment often removes them from the community: exile in antiquity, imprisonment in modernity.
- But the dangerous figure in this course is often an insider: a citizen, aristocrat, householder, wife, husband, politician, or general.

6. State violence develops over time

- In both Greece and Rome, early law coexists with private retaliation.
- Over time, institutions become more formal.
- In Rome especially, the state gradually centralizes legitimate violence, and the law on `vis` becomes a key turning point in that story.

How to use ancient/modern comparisons on the exam

Do not treat the course as a hunt for "the first version of our system." A stronger answer does three things at once:

- it names the ancient institution or argument on its own terms;
- it explains what work that institution performs in its own society;
- it then compares that function, not just the label, to a modern criminal-justice equivalent.

That means a good comparison does not simply say that the `quaestio perpetua` is "like a criminal court" or that Draco's law is "like self-defense." A better comparison says that both ancient and modern systems try to channel violence into recognizable procedures, but they do so with different assumptions about who may initiate action, what counts as public harm, and how much the state controls punishment.

Master Timeline

Greek timeline

- c. 6500-3000 BCE: Neolithic Greece
- c. 3000-1100 BCE: Bronze Age

- c. 1100-750 BCE: Greek Dark Age
- c. 750-480 BCE: Archaic Period
- c. 594 BCE: Solon's reforms
- c. 508 BCE: Cleisthenic reforms at Athens
- 499-479 BCE: Persian Wars
- 480-323 BCE: Classical Period
- 431-404 BCE: Peloponnesian War
- 469-399 BCE: Socrates
- 458 BCE: Aeschylus' `Oresteia`
- 429-347 BCE: Plato
- 323-30 BCE: Hellenistic Period

Roman timeline

- 753 BCE: Traditional foundation of Rome
- 509 BCE: End of monarchy, start of Republic
- early 5th century BCE: Plebeian secession and Struggle of the Orders
- 450 BCE: Twelve Tables
- 367 BCE: Praetorship created; consular hierarchy clarified
- 287 BCE: `lex Hortensia` makes plebiscites binding on all Rome
- 149 BCE: `lex Calpurnia` creates first `quaestio perpetua`
- 82-81 BCE: Sulla's dictatorship and expansion of permanent criminal courts
- 81 BCE: `lex Cornelia de sicariis et veneficis`
- 63 BCE: Catilinarian conspiracy
- 58 BCE: Clodius' law targets executions without trial; Cicero goes into exile
- 56 BCE: Trial of Caelius, Cicero delivers `Pro Caelio`
- 27 BCE: Augustan settlement
- 426 CE: Law of Citations
- 439 CE: `Codex Theodosianus`
- 528-534 CE: Justinian's codification, `Corpus Iuris Civilis`

Week 1: Introduction to Crime and Punishment in Ancient Greece and Rome

What Week 1 is really doing

Week 1 is not just an introduction. It sets the method of the course. The main claim is that modern categories like "crime," "criminal justice," "punishment," "democracy," and even "prison" do not map neatly onto ancient Greece and Rome.

Key examples and why they matter

- Ned Stark executing a deserter: judgment and punishment are not separated.
- Salem witch trials: formal procedure can still be unjust.
- Omar Khadr: one event can generate both criminal and civil consequences.
- Mike Duffy: public scandal, criminal process, and civil litigation can all diverge.

Ancient case study: Publius Claudius Pulcher and the sacred chickens

- Date: 249 BCE, First Punic War.
- Claudius ignored bad bird omens before attacking at Drepana.
- He mocked the sacred chickens, attacked anyway, lost badly, and was prosecuted.
- The case mixes religion, war, politics, procedure, and punishment.
- It shows that what counts as a punishable public wrong in Rome includes religious failure, not just modern-style criminal conduct.

Major concepts

- Public case versus private case
- Criminal law versus civil law
- Self-help
- Exile versus imprisonment
- Parricide and the `culleus`
- Foucault and historical discontinuity

High-yield takeaways

- Ancient Athens and Rome did distinguish public from private matters, but the categories were narrower than in modern law.
- Homicide in Athens was not prosecuted the way a modern state prosecutes murder.
- Ancient prisons were generally temporary holding places, not long-term correctional institutions.
- Exile is one of the most important ancient punishments.

Study questions answered

1. What comes to mind when you think about crime and criminals? The course wants you to realize that modern answers are shaped by media, police, courts, and prisons, not by universal truths.
2. Where do we get information about crimes and criminals? Mostly through popular culture, news, legal drama, social media, and highly mediated public stories.
3. How are modern and ancient justice systems similar? Both distinguish serious public wrongs from private disputes, use formal procedures, and try to protect the community.
4. How are they different? Ancient systems rely much more on kinship, self-help, exile, status, and weak state enforcement.

Deep study layer

What this lecture is arguing Week 1 is not just course introduction. It is a warning against category mistakes. The lecture argues that if you bring modern assumptions about crime, prison, police, prosecution, appeal, and rights directly into Greece and Rome, you will misunderstand almost every later reading. The point of the opening modern examples is not that antiquity and modernity are identical. It is that even modern systems already blur criminal and civil law, emergency power, media spectacle, and political maneuvering, so we should expect even bigger category problems in antiquity.

Concept bubbles

- `Self-help`: what it does Self-help is the right or expectation that a wronged person, family, or patron will respond directly rather than waiting for a professional state apparatus. In antiquity, law often regulates self-help instead of replacing it.
- `Criminal versus civil`: what it does In a modern system this split channels some harms toward public prosecution and others toward private compensation. The lecture shows that ancient systems often sort harms differently, so the split exists but does not map neatly onto modern categories.
- `Exile versus imprisonment`: what it does Modern states often remove offenders from society by long-term incarceration. Ancient societies more often protected the community by expelling, fining, disabling, or executing rather than warehousing people in prisons.

Why this matters for crime and punishment The course is asking you to study not just ancient laws but ancient ways of imagining wrongdoing. Once you see that the category "crime" is historically unstable, you can understand why adultery, homicide, sacrilege, debt conspiracy, and political violence look so different from week to week.

Ancient vs modern comparison

- The Omar Khadr case shows how modern states also blur citizen, enemy, soldier, and criminal.
- The Mike Duffy example shows that one factual controversy can produce both criminal and civil proceedings.

- The Claudius Pulcher story shows that Roman public wrongdoing could combine religion, military disaster, assembly procedure, and something like retrial rules.

The modern parallel is not that Rome had "military courts like ours." The better point is that both societies can use extraordinary procedures when the alleged wrong touches public safety, religion, or the state, but they justify those procedures differently.

Exam trap Do not write that ancient Greece and Rome "had the same justice system as us, just older." The lecture is structured to make exactly that answer impossible.

Week 2: Historical Background and Context

Why this week matters

Week 2 gives you the chronological map required for the whole course. If you cannot place authors, legal reforms, and political systems in the right order, later weeks become confusing.

Greek periods you should know

- Neolithic
- Bronze Age
- Dark Age
- Archaic
- Classical
- Hellenistic

Roman periods you should know

- Regal Period
- Republican Period
- Imperial Period
- Later Roman Empire

High-yield anchors

- Draco and Solon are Archaic, before tragedy and before Plato.
- Aeschylus belongs to the early Classical period.
- Socrates and Plato belong to the later Classical period.
- The Roman law material in Weeks 10-12 belongs mainly to the Republic and early Empire, but codification reaches late antiquity.

Study questions answered

1. What are the major systems of dating chronology for antiquity? BCE/CE dating plus period labels like Archaic, Classical, Hellenistic, Regal, Republic, and Empire.
2. What are the major periods of Greek history? Neolithic, Bronze Age, Dark Age, Archaic, Classical, Hellenistic.
3. What are the major periods of Roman history? Regal, Republic, Empire, later empire.
4. When did Greek culture emerge in the Mediterranean? In the Bronze Age and especially again after the Dark Age with polis formation and colonization.
5. How did Greek culture develop politically? From small communities and aristocratic structures toward poleis, tyrannies, reforms, and in some places democracy.
6. Which wars shaped Greek and Roman history? Persian Wars, Peloponnesian War, Punic Wars, Roman civil wars.
7. What is meant by "Hellenistic"? The post-Alexander Greek world, after 323 BCE.
8. When did Romans control the Mediterranean? Gradually through the middle and late Republic, especially after the Punic Wars.
9. What connections can you draw between Greek and Roman culture? Roman culture borrows heavily from Greek culture, but Roman legal and political development remains distinct.

Deep study layer

What this lecture is arguing Week 2 argues that chronology is part of interpretation. You cannot explain a law, a play, a speech, or a conspiracy if you cannot place it inside the right political world. A law from an early city-state, a tragedy from democratic Athens, and a Roman speech from the late Republic do not belong to the same institutional environment.

Concept bubbles

- `Periodization`: what it does Periodization breaks history into usable segments. It is an interpretive tool, not a fact of nature. It helps you connect ideas of crime and punishment to larger political and social changes.
- `Historical context`: what it does Context explains why a text assumes certain institutions, anxieties, and audiences. In this course, context is what stops you from confusing Aeschylean tragedy with Ciceronian advocacy or Roman imperial law.

Why this matters for crime and punishment If you know the period, you know what legal machinery is even available. Classical Athens can give you citizen juries and litigant speeches; late Republican Rome can give you praetors, `quaestiones`, juristic development, and emergency decrees. This is why the timeline is not filler. It is the backbone that makes the later comparisons coherent.

Ancient vs modern comparison Modern students often imagine legal systems as relatively stable national structures. Antiquity is less stable. Regime change, democratization, aristocratic

conflict, conquest, and empire frequently alter how wrongdoing is classified and punished. The closest modern parallel is not a single legal code but a system repeatedly changed by constitutional crisis, war, and state-building.

Exam trap Avoid floating names without periods. "Draco," "Aeschylus," "Socrates," "Cicero," and "Justinian" are not just names to memorize; they belong to different institutional worlds.

Week 3: Introduction to Greek Law

What this lecture teaches

Week 3 gives the vocabulary and institutional structure for Greek law, especially Athenian law. It is one of the densest lectures in the course.

Core Greek legal ideas

- Earliest Greek dispute resolution often involves arbitration, compensation, and vengeance.
- Written law becomes important in the Archaic period.
- Law emerges alongside political reform.

Key terms

- `nomos`: law, custom, convention
- `thesmos`: law laid down
- `dike`: often private suit or justice
- `graphe`: public prosecution
- `Heliaia`: people's court system
- archons
- Areopagus
- boule
- assembly
- juries
- lethal self-help

Draco and Solon

- Draco is associated especially with homicide law.
- Solon is associated with broader reform and with appeal rights.
- The important point is not "Draco always imposed death," but that Athenian law formalized when force and homicide were legally permitted or forbidden.

Private versus public cases

- Private cases are brought by the injured party or family.
- Public cases are brought in the name of the community.
- This distinction is crucial for understanding why homicide can be legally important without being a public crime in the modern sense.

Typical Athenian jury trial

- No professional judge in the modern sense.
- Large citizen juries.
- Timed speeches.
- No lawyers speaking for you in the modern sense; litigants speak, though they may use speechwriters like Lysias.
- Heavy dependence on rhetoric.

Lecture frame in plain English

Week 3 argues that Greek law grows out of custom, arbitration, and feud management rather than a modern state monopoly on prosecution. The procedural topic shows that Athenian institutions distribute legal authority across assemblies, councils, magistrates, and large citizen juries.

This vocabulary is the foundation for the Greek legal and literary weeks that follow. Knowing who does what lets you explain how a case actually moves through the Athenian system. The difference explains why ancient litigants spend so much effort constructing character. Athenian procedure makes persuasive speech part of adjudication itself.

Key concepts in paragraph form

nomos. Law, custom, or accepted social norm. It ties law to shared social practice rather than only to statute. It helps explain why Greek law often shades into morality and custom.

Lethal self-help. Legally bounded private violence used in response to certain serious wrongs. It channels retaliation without eliminating it. It prepares you for Draco's homicide law and the logic behind Lysias 1.

graphe versus dike. A public action versus a more private action tied to the injured party. The distinction tells you whose interest the law recognizes and who gets to bring the case. It is central for explaining why some grave harms are not public crimes in the modern sense.

MCQ Trap

MCQ Trap: Do not assume written law automatically means equality before the law. Do not call the Athenian jury system a simple equivalent of a modern jury trial.

Study questions answered

1. What are the major terms for Greek laws? `nomos`, `thesmos`, `dike`, and `graphe` are among the most important distinctions.
2. What is meant by lethal self-help? Legally permitted private violence used to defend household order or respond to certain wrongs.
3. What are the main sources for Greek law in the pre-Classical period? Epic, inscriptions, later historians, and surviving statutes cited in speeches.
4. What are the main features of Greek law in the Archaic period? Increasing written law, lawgivers, kin-based retaliation still present, and formal limits on violence.
5. Who are the major reformers at Athens? Draco, Solon, and later Cleisthenes in political organization.
6. What are the main organizations of the Athenian system? Archons, Areopagus, boule, assembly, juries.
7. What is the procedural difference between private and public cases? Who brings the case, whose interest is represented, and sometimes how the case is framed.
8. How does a typical Greek jury trial proceed? Complaint, pretrial stages, speeches, witnesses, jury vote, and sometimes a separate penalty phase.

Deep study layer

What this lecture is arguing Week 3 argues that Greek law develops out of custom, arbitration, and feud management rather than out of a modern state monopoly on prosecution. The lecture repeatedly shows that the main legal problem is often not simply "a killing happened," but "how do we stop retaliation from spiraling?"

Concept bubbles

- `nomos`: what it does `Nomos` means law, but also custom. It reminds you that ancient Greek law is deeply tied to social norms and accepted practice, not just to statute books.
- `thesmos`: what it does Early written enactment. The term marks a move toward public, fixed, readable rules that constrain elite arbitrariness.
- `dike` and `graphe`: what they do `Dike` channels a wrong into a more private action connected to the injured party. `Graphe` treats the wrong as something broader, affecting the community. The distinction tells you who gets to act and what sort of interest the law recognizes.
- `Lethal self-help`: what it does It preserves family honor and practical enforcement in a world without modern policing, but it also threatens endless reciprocal violence. Greek homicide law therefore disciplines revenge rather than eliminating it.

Why this matters for crime and punishment This lecture gives you the vocabulary for almost every Greek week that follows. Without it, you cannot explain why `Lysias 1` is about lawful killing rather than "murder with a weird defense," and you cannot explain why the `Oresteia` ends with the creation of a court.

Ancient vs modern comparison A modern criminal trial usually assumes police investigation, public prosecution, legal professionals, and a judge who controls procedure. Athenian law assumes self-representation, citizen juries, strong rhetorical performance, and a much thinner professional legal class. The functional comparison is that both systems seek legitimacy through procedure, but the burden of producing the case falls on different people.

Exam trap Do not collapse `dike` and `graphe`, and do not say that written law eliminates social inequality. The lecture explicitly notes that early written law can publicize rules while still encoding inequality.

Week 4: Greek Tragedy of Crime - Aeschylus' Oresteia

The Five Things

- Author: Aeschylus
- Title: `Oresteia`
- Date: 458 BCE
- Location: Athens
- Language: Greek

What the trilogy is about

The `Oresteia` tracks a chain of violence inside the house of Atreus:

- Agamemnon sacrifices Iphigenia.
- Clytemnestra kills Agamemnon.
- Orestes kills Clytemnestra to avenge Agamemnon.
- The Furies pursue Orestes.
- Athena creates a court and transforms vengeance into civic adjudication.

Why the trilogy matters for the course

- It dramatizes a world before stable civic justice.
- It presents violent revenge as both necessary and destructive.
- It shows the transition from blood vengeance to courtroom justice.
- It treats crime as moral, familial, civic, and divine at the same time.

Major themes

- Hospitality
- Kinship violence
- Gender inversion and anxiety

- Divine justice versus human justice
- Pollution
- Founding of the court

High-yield interpretation

The trilogy does not simply say "law replaces revenge." It stages a compromise:

- older forces of vengeance are not destroyed;
- they are incorporated into civic order as the Eumenides;
- justice becomes institutional, but only by accommodating older claims.

Lecture frame in plain English

The Oresteia week argues that tragedy is a public arena for thinking about justice, guilt, revenge, and institutional change. The second Oresteia topic argues that Athena's court is a political settlement that transforms vengeance into civic order without abolishing its emotional force.

The trilogy provides the course's clearest mythic model for the move from blood revenge to civic adjudication. It gives you a model for explaining how institutions manage violence instead of magically ending it. The trilogy is useful because it shows what the triumph-of-law story usually hides. Institutional justice often survives by channeling emotion rather than eliminating it.

Key concepts in paragraph form

Pollution. A stain or contagion attached to grave wrongdoing, especially bloodshed. It makes homicide a problem for households, cities, and gods, not just for one victim. It explains why the trilogy treats violence as socially expansive.

Furies. Divine agents of kin-based vengeance. They keep old obligations to blood and family alive. The final settlement matters because Athens must incorporate them, not erase them.

Eumenides. The renamed Furies, now integrated into Athens. They preserve fear, sanction, and continuity between old and new justice. The civic court succeeds because it absorbs old powers into the city.

MCQ Trap

MCQ Trap: Do not say the play simply proves revenge is bad and courts are good; it is about compromise and incorporation. Do not reduce Athena's solution to a simple acquittal.

Study questions answered

1. How does the backstory set up revenge? The house of Atreus is already trapped in inherited violence before the trilogy begins.
2. How does Aeschylus describe life before a justice system? As a world where blood must answer blood and no stable neutral authority resolves conflict.

3. Does Clytemnestra fit expected gender norms? No. She is repeatedly coded as masculine, authoritative, strategic, and politically dangerous.
4. What role does hospitality play? Violations of household trust and guest relationships deepen the moral horror of the crimes.
5. Human versus divine justice? Human judgments are limited and political; divine claims are older, broader, and harder to escape.
6. How does Orestes resolve the conflict? He does not resolve it privately. The case is transferred into a court.
7. How does the trilogy reflect court development? Athena's institution of trial mirrors the move toward civic adjudication.
8. What role do divinities play? They embody competing justice systems.
9. Do punishments fit crimes? Not neatly; each punishment generates further guilt.
10. What do the Eumenides preserve? Order, fear, and the older logic of vengeance, now folded into civic life.

Deep study layer

What this lecture is arguing Week 4 argues that tragedy is not a break from legal history but another place where Athenians think publicly about violence, guilt, legitimacy, and institutional change. The `Oresteia` dramatizes the movement from household revenge to civic adjudication, but it refuses to pretend that the old logic disappears.

Concept bubbles

- `Pollution`: what it does Pollution marks serious wrongdoing as spiritually and socially contagious. It explains why homicide threatens more than the immediate victim.
- `Furies/Erinyes`: what they do They personify the older order of kin-based vengeance. Their function is to insist that blood crimes demand response and cannot simply be rationalized away.
- `Athena's court`: what it does The court creates a civic forum for deciding blood guilt, transferring enforcement from kin retaliation to the city. But it succeeds only by incorporating, not erasing, the old vengeance powers.

Why this matters for crime and punishment The trilogy gives the course a master myth for state formation. Civic justice is shown as a political settlement with older ideas of honor, blood, family obligation, and divine anger. That is exactly the pattern you later see in Roman material, where new public courts never fully erase status politics and private influence.

Ancient vs modern comparison Modern states often tell a self-congratulatory story in which courts replaced vengeance and made justice rational. The `Oresteia` is more honest. It shows that legal institutions do not abolish anger, fear, or memory. They redirect them. The closest modern parallel is not simple "rule of law" rhetoric, but modern debates over vigilantism, victim rights, restorative justice, and the emotional afterlife of violent crime.

Exam trap Do not say Athena simply proves Orestes innocent in a factual sense. The play is about the creation of authority and legitimacy, not only about evidentiary truth.

Week 5

Why this bridge week still matters

There is no lecture-script file for Week 5 in the preserved local course archive, but that does not make Week 5 empty from a studying perspective. In the structure of the semester, this is the point where you need to consolidate the Greek-law vocabulary from Weeks 1-4 before the course shifts into criminological theory in Week 6 and then into the major Greek reading weeks. The function of this bridge week is therefore review, synthesis, and transition rather than new lecture material.

What to review in this gap week

You should use this week to make sure three earlier claims are secure. First, Week 1 established that ancient crime and punishment do not map neatly onto modern categories. Second, Week 3 gave you the institutional vocabulary of Greek law, especially the distinction between public and private actions, the role of magistrates, and the continuing importance of self-help. Third, Week 4 showed that tragedy imagines the move from vendetta to civic justice without pretending that older emotions and kin obligations simply disappear.

Bridge thesis

The real value of Week 5 is that it lets you connect Greek legal institutions to Greek ways of imagining criminality. If you cannot explain how Week 3's legal vocabulary and Week 4's tragic imagination fit together, then Week 7 will look like a strange murder case rather than a case study in lawful self-help, household order, and rhetorical manipulation. Think of this week as the hinge between legal structure and cultural representation.

Bridge checklist

1. Can you explain why homicide in Athens is legally serious without calling it a fully modern public crime?
2. Can you define `dike`, `graphe`, `Areopagus`, and lawful self-help without confusing them?
3. Can you explain why the `Oresteia` matters for the later Lysias week?
4. Can you describe the difference between revenge being eliminated and revenge being redirected into civic procedure?

Exam trap

Do not treat the lack of a lecture script as permission to skip the gap entirely. In practice, this is the ideal review point for the Greek half of the course before the theoretical and rhetorical material intensifies.

Week 6: Modern Criminology and Ancient Crime

Why this week matters

Week 6 gives the theoretical toolkit the professor uses to read the ancient materials. You should know the theory names, but more importantly you should know how they are applied in later weeks.

Five approaches to defining crime

- Legal: crime is law-breaking.
- Moral: crime is what is wrong.
- Social: crime is norm violation.
- Humanistic: crime is violation of fundamental human rights.
- Social constructionist: societies construct both crime and criminality.

Positivism

- Biological positivism: Lombroso and the search for physical criminal types.
- Sociological positivism: environment, neighborhood, and measurable social forces.
- Psychological positivism: mental and internal causal models.

Walklate's four explanation models

- Rational Choice Theory
- Social Control Theory
- Relative Deprivation Theory
- Hegemonic Masculinity

Otherness

- Criminological other: a person who does not fit the expected image of a criminal.
- Victimological other: a person who does not fit the expected image of a victim.

High-yield takeaways

- Ancient texts can look strikingly modern when they explain criminality through personality, desire, class frustration, or social environment.
- The course repeatedly asks whether ancient writers focus on the act or on the person.

Lecture frame in plain English

Week 6 uses modern criminology as an interpretive toolkit rather than as a template to be imposed mechanically on antiquity. The positivism topic explains why ancient writers can look modern when they explain wrongdoing through character, environment, desire, gender, or social frustration.

These definitions let you explain how ancient texts construct criminality beyond strict legal categories. It gives you a language for analyzing cause, stereotype, and social labeling in later weeks.

The continuity lies in construction; the difference lies in style and authority. Both are explanatory projects, but they authorize themselves differently.

Key concepts in paragraph form

Social construction of crime. The view that crime and criminality are made by institutions, norms, and power relations. It shifts attention from timeless essence to labeling and social meaning. It is one of the most useful models for reading Catiline, Clodia, and Euphiletos.

Positivism. A family of approaches looking for observable causes of criminal behavior. It organizes explanation around empirical or quasi-empirical causal models. It helps you compare ancient character narratives with modern causal theories.

Criminological other. A person who does not fit the expected image of offender or victim. It reveals how public stereotypes shape who seems believable or dangerous. This matters for Clodia, Caelius, Catiline, and many ancient defendants.

MCQ Trap

MCQ Trap: Do not treat the legal definition as the only definition that matters in the course. Do not call ancient authors criminologists in the disciplinary sense; the lecture is using analogy, not identity.

Study questions answered

1. How is criminology defined? As a flexible field studying crime, criminality, punishment, victims, and social responses.
2. What are the approaches to defining crime? Legal, moral, social, humanistic, social constructionist.
3. How did criminology develop? Through changing emphasis from law and punishment to scientific, social, and cultural explanation.
4. What is positivism? The search for empirical causes of criminal behavior.
5. What are the three positivist strands? Biological, sociological, psychological.
6. What are Walklate's four models? Rational choice, social control, relative deprivation, hegemonic masculinity.
7. What are the criminological and victimological others? People who do not fit expected public stereotypes of offender or victim.

Deep study layer

What this lecture is arguing Week 6 argues that modern criminology is not the subject of the course so much as the toolkit for reading the ancient material. The lecture does not claim that Greeks and Romans were criminologists in the modern disciplinary sense. It claims that they often ask the same big questions: what counts as crime, what causes it, who gets labeled criminal, and what punishment is for.

Concept bubbles

- `Social construction of crime`: what it does This idea insists that crime is produced through institutions, norms, and power rather than discovered as a timeless natural fact. It is one of the most useful tools in the whole course.
- `Positivism`: what it does Positivism looks for causes of criminality in observable traits, environments, and measurable patterns. It helps you see why ancient texts that explain wrongdoing through upbringing, desire, gender, class, and moral weakness can feel strangely modern.
- `Criminological or victimological other`: what it does This concept explains why some offenders or victims are believed immediately while others are read as unlikely, suspicious, or socially unintelligible. It is crucial for understanding Euphiletos, Catiline, Clodia, and Caelius.

Why this matters for crime and punishment This lecture is what lets you move from description to analysis. Instead of saying only that Catiline is called corrupt, or that Clodia is represented as dangerous, you can ask what explanatory model is being used. Is the speaker blaming character, gender, status anxiety, social deprivation, rational calculation, or political theater?

Ancient vs modern comparison Modern criminology often claims scientific neutrality, but it still depends on social fears and public narratives about who looks criminal. Ancient texts do the same thing more openly. They make criminality visible through stories, metaphors, genealogy, and moral language rather than through expert reports or statistics.

Exam trap Do not write as if the legal definition of crime is the only one that matters in the course. The professor explicitly uses Week 6 to show why legal definitions are too narrow for the ancient material.

Week 7: Athens and Draco's Homicide Law / Lysias 1

The Five Things

- Author: Lysias
- Title: `On the Murder of Eratosthenes` (`Lysias 1`)
- Date: probably after 403 BCE, before Lysias' death
- Location: Athens
- Language: Greek

Who is who

- Author: Lysias
- Speaker in court: Euphiletos
- Defendant: Euphiletos
- Dead man: Eratosthenes

Why this case matters

This week shows how Athenian homicide law works in practice and how rhetoric bends law. Euphiletos must show that the killing was legal, not premeditated murder.

The key legal issue

The defense relies on the exception in Draco's homicide law for killing a seducer caught in the act. The most important exam point is this:

- the law creates an exception to homicide liability;
- it does not simply say "adultery is punishable by death."

Why "seducer" matters

The lecture stresses that seduction is treated as worse than rape because seduction threatens:

- household authority,
- legitimacy of children,
- inheritance,
- the integrity of the household.

Euphiletos' strategy

- portray himself as ordinary, modest, gullible, and law-abiding;
- portray Eratosthenes as a serial corrupter of households;
- claim the killing was lawful revenge, not murder;
- imply he acted as the law commanded, even though the law is more limited than that.

Direct passages from the reading

From `Lysias 1.pdf`, section 4:

> "I believe, gentlemen, that what I have to demonstrate is this: that Eratosthenes seduced my wife and corrupted her ... and that I did not commit this deed for money ... except revenge, as the law allows."

Why it matters:

- This is the entire defense theory in miniature.
- Euphiletos reframes the case from homicide to justified household revenge.
- The phrase "as the law allows" is doing major rhetorical work.

From `Lysias 1.pdf`, section 21:

> "Make sure, then, no one else finds out about this; otherwise, our agreement will be worth nothing. I expect you to show me them in the act. For I do not need words, but clear evidence..."

Why it matters:

- Euphiletos tries to prove that he waited for lawful, direct confirmation.
- It supports his claim that he was not acting out of long-term personal hatred.
- It also reveals calculated preparation, which is exactly why the speech needs to manage the line between plan and lawful response.

From `Lysias 1.pdf`, opening:

> "If you employed the same standards for others as you do for your own behaviour, there is not a single one of you who would not be furious..."

Why it matters:

- Euphiletos invites the jury to identify with him personally.
- The case is not presented as technical law alone, but as shared masculine household experience.

Lecture frame in plain English

Lysias 1 turns a homicide prosecution into a contest over whether the dead man, not the defendant, was the real criminal threat. The rhetoric topic shows how Lysias builds Euphiletos as an ordinary, credible man while recasting Eratosthenes as the recognizable type of a dangerous seducer.

It is the clearest Greek example of rhetoric stretching a narrow legal exception into a broad moral license. It shows how legal success can depend on identity construction rather than technical doctrine alone. The difference shows how far the state monopoly on violence has moved. The continuity lies in narrative persuasion; the difference lies in legal framing.

Key concepts in paragraph form

Seducer. The adulterer imagined as a corrupter of household order. It turns sexual misconduct into a broader social and civic danger. The category helps Euphiletos make the killing look legally and morally necessary.

Lawful self-help. Private violence presented as enforcement within legal limits. It lets the defendant appear as an enforcer of household order instead of a murderer. The whole speech depends on the jury accepting this reframing.

Logographer. A professional speechwriter for litigants who still speak in their own voice. It lets rhetoric enter the courtroom while preserving the citizen's formal self-representation. Lysias' artistry works because it feels plain and natural.

MCQ Trap

MCQ Trap: Do not say Draco's law simply authorized killing adulterers in general; the exception is narrower than the speech makes it sound. Do not separate the legal and rhetorical issues; the lecture treats them as inseparable.

Study questions answered

1. What are the Five Things? See above.
2. Who is on trial and who is dead? Euphiletos is on trial for killing Eratosthenes.
3. Who speaks and who wrote the speech? Euphiletos speaks; Lysias wrote it.
4. What matters in Draco's law? The homicide exception for killing a seducer caught in the act.
5. What are the main defense arguments? Eratosthenes seduced the wife, the killing was lawful, there was no prior enmity, and Euphiletos acted with witnesses.
6. How do these fit adultery procedure? The speech exaggerates the law's support for killing and makes lawful response sound mandatory.
7. Why might the defense succeed? Because it aligns with Athenian anxieties about household control and jury identification.
8. How does this connect to Week 6? The speech constructs criminality through character, household role, and social norm rather than bare legal definition.
9. Is the approach similar to modern court practice? In one sense yes, because narrative and character matter; in another no, because the whole legal framework is radically different.

Deep study layer

What this lecture is arguing Week 7 argues that a homicide trial can turn into a struggle over who gets to count as the real criminal. Euphiletos admits the killing, but Lysias tries to make the jury experience the case not as a murder prosecution but as the lawful destruction of a household predator. The speech therefore tests the gap between legal rule and social imagination.

Concept bubbles

- `Logographer`: what it does A logographer gives a litigant a professionally crafted voice while preserving the fiction that the citizen speaks for himself. This matters because Lysias' artistry is hidden inside Euphiletos' supposedly plain, honest speech.
- `Seducer`: what it does In the speech, the seducer is not just a sexually immoral man. He is a destroyer of household order, legitimacy, inheritance, and masculine control. The category turns adultery into a larger civic danger.
- `Lawful self-help`: what it does The homicide exception allows the householder to present violence as an act of enforcement rather than an act of criminal aggression. The legal question is therefore whether this particular killing stayed inside the permitted boundary.

Why this matters for crime and punishment This is the clearest Greek example of law and rhetoric pulling in the same direction. The legal defense is narrow, but the speech expands it by making Eratosthenes seem like exactly the kind of man any jury of householders would want removed.

Passage dossiers `Lysias 1 [1]-[4]`

- Speaker: Euphiletos, performing a defense speech written by Lysias.
- Immediate audience: Athenian jurors in a homicide court.
- Broader audience imagined by the speech: male citizens who think of themselves as household heads.
- Context: Euphiletos has admitted killing Eratosthenes and must turn the legal issue from homicide into justified retaliation against a seducer.
- What the passage is doing: the opening asks jurors to judge as husbands and fathers before they judge as technicians of law. It tries to universalize the injury so that private shame becomes a shared civic concern.

`Lysias 1 [21]`

- Speaker inside the story: Euphiletos speaking to the enslaved woman who has informed him of the affair.
- Audience outside the story: jurors listening to Euphiletos narrate his own caution.
- Context: he needs to show that he did not kill out of long-standing vendetta or opportunistic street violence.
- What the passage is doing: "I do not need words, but clear evidence" is an evidentiary performance. It makes Euphiletos sound restrained, procedural, and almost judicial, even though he is privately arranging a lethal confrontation.

`Lysias 1`, opening identification move

- Speaker: Euphiletos.
- Audience: jurors.
- Context: before facts are laid out, he asks the jury to imagine themselves suffering the same wrong.
- What the passage is doing: this is a classic identification strategy. The speech shifts the question from "Did he kill?" to "What would any honorable man have done?"

Ancient vs modern comparison No modern criminal code gives a husband a general right to kill an adulterer caught in the act. That is the obvious difference. The subtler comparison is that modern trials still depend on stories about credibility, respectability, sexual behavior, and whether a defendant seems like the "kind of person" who acted reasonably. Ancient Athens is more open about letting those social judgments do legal work.

Exam trap Do not write that Draco's law simply says "adultery is punishable by death." The speech wants you to feel that, but the legal exception is narrower and more conditional than the rhetoric suggests.

Week 8: Greek Philosophy of Crime - Plato's Gorgias

The Five Things

- Author: Plato
- Title: `Gorgias`
- Date: fourth century BCE, set in the late fifth century
- Location: Athens
- Language: Greek

Main figures

- Socrates
- Gorgias
- Polus
- Callicles

Why rhetoric matters

Rhetoric is the art of persuasion. In Athens, persuasive speech could shape assemblies and trials. The dialogue asks whether persuasion without truth is power, corruption, or both.

Socrates versus Polus

Polus argues that a successful criminal can be happy if he avoids punishment. Socrates argues:

- wrongdoing makes the soul worse;
- escaping punishment is worse than being punished;
- punishment is a kind of cure.

This is one of the clearest ancient arguments for rehabilitation over simple deterrence.

Socrates versus Callicles

Callicles argues:

- `physis` (nature) and `nomos` (convention/law) are opposed;
- the strong should dominate the weak;
- justice is a tool invented by the weak majority;
- self-indulgence is natural.

Socrates argues:

- justice and self-discipline are real goods;
- unrestrained desire produces disorder;
- the predatory outlaw cannot live in stable community.

High-yield takeaways

- Gorgias is not a law lecture; it is a lecture on competing definitions of crime and justice.
- Socrates takes a moral and almost religious view of criminality.
- Callicles pushes a radical social-constructionist and anti-moral line.

Lecture frame in plain English

The rhetoric topic argues that persuasive speech is one of the central mechanisms through which law, politics, and public truth are shaped. The punishment topic stages three rival ways of thinking about wrongdoing: success without punishment, punishment as cure, and power beyond conventional justice.

It gives you the philosophical backdrop for understanding both Lysias and Cicero. It lets you map ancient debate onto modern questions about deterrence, rehabilitation, morality, and social construction. The lecture treats rhetoric as a live modern problem, not an antique curiosity. The ancient argument stays useful because it is about purpose, not just policy.

Key concepts in paragraph form

Rhetoric. The art or technique of persuasive speech. It moves juries, assemblies, and publics toward belief and action. In Athens, rhetorical skill is a route to power and a danger to justice.

Sophist. A teacher of persuasive technique and argument. The sophist professionalizes persuasion as a teachable civic skill. He becomes a symbol of both democratic opportunity and manipulative danger.

Punishment as cure. Socrates' claim that punishment improves the diseased soul of the wrongdoer. It redefines punishment as moral repair rather than only pain or deterrence. This is one of the clearest ancient arguments for a rehabilitative model.

MCQ Trap

MCQ Trap: Do not treat rhetoric as decoration; for Plato and the course it is a technology of power. Do not reduce Socrates, Polus, and Callicles to one-word modern theories and stop there.

Study questions answered

1. What are the Five Things? See above.
2. Who are the main speakers? Socrates, Gorgias, Polus, Callicles.

3. What is rhetoric and why does it matter? Persuasive speech; it matters because it shapes law, politics, and public truth.
4. Who is Gorgias in relation to Socrates? A sophist and teacher of rhetoric, unlike Socrates' philosophical method.
5. Who are Polus and Callicles? Successors in the debate: Polus defends power and success, Callicles defends natural domination and anti-conventional ethics.
6. What criminological theories are visible? Social construction, deterrence, rehabilitation, moral versus legal definitions of crime, hegemonic masculinity.
7. Can the speakers be mapped to modern theories? Yes. Polus resembles deterrence and success-centered thinking; Socrates resembles rehabilitation and moral theory; Callicles resembles radical anti-norm naturalism and social-constructionist suspicion of law.

Deep study layer

What this lecture is arguing Week 8 argues that rhetoric is not secondary to crime and punishment. It is one of the places where crime and punishment are made intelligible. Plato's `Gorgias` is therefore part legal theory, part political theory, and part critique of persuasive power.

Concept bubbles

- `Rhetoric`: what it does Rhetoric produces belief, moves audiences, and can detach persuasion from truth. In a city where citizens judge cases and vote in assemblies, rhetoric is a practical technology of power.
- `Sophist`: what it does The sophist represents professionalized persuasion. He offers the skill of winning arguments, which makes him useful, profitable, and politically dangerous.
- `Punishment as cure`: what it does Socrates' claim that punishment is good for the wrongdoer reimagines criminal justice as moral medicine rather than mere retaliation or deterrence.
- `physis` versus `nomos`: what it does This contrast lets Callicles attack law as an artificial restraint imposed by the weak, while Socrates defends justice as necessary for a livable soul and community.

Why this matters for crime and punishment The whole second half of the course keeps returning to this problem: is persuasion helping a community find justice, or is it simply helping the clever dominate the less powerful? Once you see the `Gorgias` clearly, you can see Lysias and Cicero as case studies in exactly the danger Plato is worried about.

Ancient vs modern comparison The lecture explicitly compares rhetoric to advertising, social-media persuasion, targeted messaging, and "fake news." The modern point is not that sophists were influencers in togas. It is that democratic and mass-media societies remain vulnerable to polished persuasion that can outstrip truth, evidence, or justice.

Exam trap Do not reduce Socrates, Polus, and Callicles to three neat modern theories and stop there. The point is the clash between rival visions of power, happiness, and punishment, not a one-to-one labeling exercise.

Week 9: Bridge from Greek Rhetoric to Roman Law

Why this bridge week matters

There is no lecture-script file for Week 9 in the preserved archive, but the course logic clearly requires a transition here. Up to this point the course has spent several weeks showing how Greeks think about wrongdoing through tragedy, law, rhetorical self-fashioning, and philosophy. Week 10 then opens Roman law with a heavy institutional lecture. This bridge week is therefore the place to convert Greek themes into comparison tools so that Roman law does not feel like a disconnected new subject.

What this bridge is doing

The key transition is from Greek argument about justice to Roman argument about institutions. Greek material repeatedly asks what crime is, who counts as the real offender, whether persuasion distorts justice, and how law coexists with private retaliation. Roman material keeps those problems, but it places much greater weight on magistracies, assemblies, formal categories, public order, and the slow centralization of force. The course is not moving from "ideas" to "facts." It is moving from one style of legal imagination to another.

What to carry forward into Week 10

Bring four Greek lessons with you. First, legal categories are historically unstable. Second, rhetoric does not merely decorate law; it helps produce legal reality. Third, ancient communities often respond to wrongdoing through status, kinship, and social identity rather than through a neutral state alone. Fourth, punishment can be explained in more than one way at once: vengeance, deterrence, civic order, moral repair, and symbolic performance can all overlap.

Roman preview

Once you enter Week 10, look for Roman versions of those same issues. The Roman state is more institutionally elaborate than Athens in the material covered here, but it is not yet a modern criminal state. Roman law still depends on hierarchy, office, political conflict, and unequal access to protection. That is why the Roman weeks still belong to the same course rather than to a totally different one.

Bridge checklist

1. Can you compare Greek lawful self-help to Roman patronage and magistrate coercion without collapsing them into the same thing?
2. Can you explain how Plato's suspicion of rhetoric prepares you to read Sallust and Cicero?
3. Can you describe one important continuity and one important difference between Greek and Roman approaches to crime?
4. Can you explain why the Roman law lecture must be read as political history as well as legal history?

Exam trap

Do not enter the Roman weeks thinking that Rome is simply "more advanced" and therefore easier to map onto modern law. The course keeps warning against that teleological shortcut.

Week 10: Introduction to Roman Law

Why this is a very high-yield lecture

Week 10 is one of the most term-heavy lectures in the course. It covers Roman legal history, magistrates, assemblies, jurists, codification, criminal procedure, and the growth of state authority.

Origin story of Roman law

- Rome begins, in legend, in 753 BCE.
- Early Rome is governed by kings.
- Justice in the regal period is largely custom-based.
- Priests initially control written law.
- Family law and religious regulation are early formal areas.
- Patron-client relations act as a parallel social structure for dispute resolution.

Core early developments

- `imperium`: power to command
- `intercessio`: veto or blocking power
- Struggle of the Orders
- tribunes of the plebs
- Twelve Tables, 450 BCE
- `provocatio ad populum`: citizen appeal from magistrate to people

Magistrates and offices you must know

- consuls
- praetors
- `praetor urbanus`
- `praetor peregrinus`
- tribunes of the plebs
- quaestors
- aediles
- censors

- dictator
- prorogation, proconsuls, propraetors

Praetors and legal development

- Praetors are central to the justice system.
- They issue edicts when entering office.
- Law developed from the edicts is called `ius honorarium`.
- This is different from more formal law made by assemblies.

Roman lawyers and jurists

- Early legal specialists are the `pontifices`.
- Roman legal work includes:
- `ad respondendum` - giving legal advice
- `ad agendum` - preparing cases
- `ad cavendum` - drafting documents
- Under Augustus and later emperors, some jurists receive `ius respondendi ex auctoritate principis`.

Jurists and schools you should know

- Marcus Antistius Labeo
- Proculian school
- Masurius Sabinus
- Sabinian school
- Gaius
- Papinian
- Ulpian
- Paulus
- Modestinus

Codification stages

- Law of Citations, 426 CE
- `Codex Theodosianus`, 439 CE
- Justinian's `Corpus Iuris Civilis`, from 528 CE
- `Codex Iustiniani`

- `Novellae`
- `Institutiones`
- `Digest`

Republican constitution and assemblies

- SPQR = Senate and People of Rome.
- Senate: advisory, but hugely authoritative through `senatus consulta`.
- Centuriate assembly:
- wealth-based;
- favors the rich;
- elects consuls, praetors, censors;
- votes on war;
- hears appeals in capital cases.
- Tribal assembly:
- tribe/residence based;
- more egalitarian;
- elects quaestors and curule aediles;
- votes on `leges`.
- Plebeian assembly:
- plebeians only;
- elects tribunes and plebeian aediles;
- votes on `plebiscita`;
- after `lex Hortensia`, plebiscites bind all Rome.

Criminal procedure development

- Early criminal action comes from magistrates with `imperium`.
- Most cases are still private for a long time.
- `quaestio`: ad hoc criminal inquiry/court.
- `quaestio perpetua`: permanent court, beginning with `lex Calpurnia` in 149 BCE.
- Key permanent courts include:
- `repetundae`
- `maiestas`
- `veneficia et sicarii`

- `ambitus`
- `vis`

Why `lex Cornelia de sicariis et veneficis` matters

- 81 BCE
- Establishes a permanent court for murder and poisoning.
- Also criminalizes carrying weapons with intent to kill or steal.
- This is one place where you can argue that murder becomes criminal in Rome in a stronger sense than earlier.

Later empire and class

- `cognitio extraordinaria` eventually takes over much judicial work.
- Urban prefects and other prefects extend enforcement.
- `honestiores` receive better treatment than `humiliores`.
- Augustus adds moral legislation, including adultery courts.

Delicts

- Not quite crimes, not quite torts.
- Core delicts:
- `furtum`
- `rapina`
- `damnum iniuria datum`
- `iniuria`

Lecture frame in plain English

The origins topic argues that Roman law emerges through legend, custom, priestly control, patronage, and political struggle rather than appearing as a ready-made code. The magistrates topic argues that Roman law works through offices, assemblies, and checks on power rather than through a simple separation of branches. The jurists topic argues that Roman law becomes increasingly shaped by expert interpretation, teaching, and codification. The criminal-procedure topic argues that Rome slowly develops more regular public courts for recurring political and social dangers.

It shows that Roman legal history is inseparable from Roman constitutional history. You need these institutions to understand how legislation, appeal, and legal administration operate in the Republic. It explains why Roman law has such a long later legacy even after the political world that produced it has changed. It is the bridge between general Roman legal history and the specific Roman crime material in Weeks 11 and 12. Roman law is foundational, but not because it already looks modern in every respect. Roman law must be explained as a political process, not just a

doctrinal one. Roman law's legacy lies heavily in reasoning, classification, and textual authority. The Roman development matters because it is partial, contested, and status-laden.

Key concepts in paragraph form

Patron-client system. A hierarchy in which patrons protect and assist dependents or clients. It channels disputes, protection, and influence through social hierarchy. It modifies self-help and weak state enforcement instead of eliminating them.

Twelve Tables. The early public posting of Roman law in the fifth century BCE. They reduce priestly secrecy and make law more publicly knowable. They are a landmark in access and publicity, not the final form of Roman law.

imperium. The power to command held by certain Roman magistrates. It authorizes coercion, command, and political action. It explains why legal administration is bound to office-holding.

intercessio. The power to block or forbid another magistrate's action. It checks concentration of power inside a collegial magistracy. It is one of Rome's key anti-monarchical mechanisms.

provocatio. Citizen appeal from coercive magistrate action to the people. It limits state coercion against citizens. It becomes crucial background when emergency execution without trial is later debated.

ius honorarium. Law and remedies developed through magistrates, especially praetors, in office. It adapts rigid older law to new disputes and social realities. It shows Roman law's flexibility and practical problem-solving.

Codification. The collection and ordering of legal materials into more authoritative bodies of text. It stabilizes and transmits legal knowledge across time. This is why the later Roman legal tradition matters far beyond the Republic.

quaestio perpetua. A permanent criminal court for a recurring category of wrong. It regularizes prosecution and classification for repeated public harms. It marks Rome's movement toward a more recognizable criminal-law structure.

vis. Unauthorized force or violence treated as a public danger. It shifts violence from a private quarrel frame toward a state-protection frame. It becomes crucial for the Catiline and Caelius material.

MCQ Trap

MCQ Trap: Do not write as if the Twelve Tables are a complete rational code or as if early Rome already had a full public criminal system. Do not call the praetor a straightforward modern judge or the Senate a parliament. Do not reduce codification to memorizing dates; the point is the growth of legal authority through texts. Do not assume all serious Roman violence was always handled as a modern public crime.

Study questions answered

1. **What are the main features of the origin story of Roman law?** Roman law begins as a layered story rather than as a finished code. The lecture starts with kings, custom, priestly control, household authority, and patronage, then shows how plebeian struggle, publicity, magistracies, and writing slowly make law more visible and more civic.

2. **Why are the Twelve Tables important?** The Twelve Tables matter because they reduce priestly secrecy and make law publicly knowable. The lecture treats them as a landmark in access and publicity, not as a complete rational code that solved Roman legal development once and for all.
3. **Which officials are mainly responsible for legal affairs?** In Republican Rome the praetors matter most for day-to-day legal administration, especially the praetor urbanus and praetor peregrinus. That answer should still be placed inside a wider constitutional setting that includes magistrates, assemblies, jurists, and later imperial authority.
4. **What are the main sources of law?** The lecture wants you to think historically here. Early Rome emphasizes custom, priestly expertise, and the Twelve Tables; the Republic adds leges, plebiscita, praetorian edicts, and senatorial influence; the Empire gives growing weight to jurists and imperial constitutions.
5. **How did legal education develop?** Roman legal expertise begins in the hands of the pontifices, then becomes a prestigious juristic culture in which elite experts teach, interpret, and classify law. By late antiquity, legal knowledge is increasingly textual, school-based, and tied to state-backed authority.
6. **What are the main stages in codification?** The course emphasizes three big codifying moments: the Law of Citations in 426 CE, the Codex Theodosianus in 439 CE, and Justinian's Corpus Iuris Civilis from 528 onward. The key point is not just memorizing dates but seeing the long shift from scattered expertise toward curated bodies of authoritative text.
7. **How did legislation work?** Roman legislation is political before it is purely doctrinal. Magistrates propose, assemblies vote, the Senate advises with enormous practical authority, and later emperors dominate the process more directly.
8. **How did criminal law and trials develop?** The lecture presents Roman criminal law as gradual and uneven: magistrate coercion comes first, ad hoc quaestiones follow, and permanent courts eventually appear for recurring public wrongs such as extortion, treason, bribery, and violence. That development matters because it marks Rome's slow movement toward stronger public control over harms that were earlier treated more privately or more politically.
9. **What role did the emperor play?** The emperor becomes increasingly central as law develops: he appoints officials, shapes appeals, strengthens juristic authority, and ultimately stands behind late codification. A strong answer explains that this is part of the wider centralization of interpretive and coercive power.

Deep study layer

What this lecture is arguing Week 10 argues that Roman law is really a history of institutions, political struggle, and state-building. The lecture does not present Roman law as a single finished code. It presents it as a long process in which custom, priestly knowledge, aristocratic office, plebeian agitation, praetorian innovation, juristic expertise, and imperial authority gradually produce something that later Europe will treat as a foundational legal tradition.

Concept bubbles

- `Patrons and clients`: what it does Patronage gives Romans a semi-private mechanism for

protection, representation, and pressure. It modifies self-help by embedding it inside hierarchy rather than replacing it with a neutral state.

- `imperium`: what it does `Imperium` is command power. It lets magistrates act, enforce, and govern, and it explains why Roman law is inseparable from Roman office-holding.
- `intercessio`: what it does This is the power to block a colleague's or magistrate's action. It acts as an anti-monarchical check inside Republican government.
- `provocatio`: what it does Citizen appeal to the people limits magistrates' coercive power and becomes a key background principle whenever emergency punishment of citizens is debated.
- `quaestio perpetua`: what it does A permanent criminal court turns repeated political or public harms into recognizable categories for adjudication. It is one of the main ways Rome moves toward a more regular criminal-law system.
- `ius honorarium`: what it does Praetorian law adapts rigid old rules to new situations. It shows Roman law's practicality and institutional flexibility.
- `vis`: what it does The category of `vis` treats certain unauthorized force not just as a private injury but as a threat to public order and the commonwealth.

Why this matters for crime and punishment Week 10 is the hinge between Greek and Roman material. It explains why later Roman cases are obsessed with state authority, procedure, status, and public order. Without this week, Catiline and Caelius become isolated stories instead of examples of a legal system deciding what counts as public danger.

Key chronology to remember as a story

- Regal Rome: custom, kings, priestly control, household and religious regulation.
- Early Republic: collegial magistrates, `imperium`, `intercessio`, plebeian resistance.
- Fifth century BCE: Twelve Tables publicize law and reduce priestly secrecy.
- Middle Republic: praetors and assemblies structure legal life more visibly.
- Late Republic: permanent courts make repeated public wrongs more classifiable and more political.
- Empire and late antiquity: jurists, emperors, `cognitio extraordinaria`, and codification centralize interpretive authority.

Ancient vs modern comparison Roman law is often called the ancestor of modern law, but that statement hides a lot. It is truest for private law and legal reasoning, not for a modern police-centered criminal state. Rome shares with modern systems an increasing desire to classify harms, formalize procedure, and centralize authority; it differs in its dependence on status, patronage, office-holding, and weak separation between law and politics.

Exam traps and likely comparison questions

- Do not call the praetor a "judge" without qualification. He is closer to a magistrate who organizes procedure and shapes available remedies.

- Do not call the Senate a legislature in a modern parliamentary sense.
- Do not treat the Twelve Tables as a complete rational code; the lecture presents them as a landmark in publicity and access, not as the end of development.
- A likely comparison question is how Rome moves from regulating violence to monopolizing violence. Use `quaestiones`, `vis`, and later imperial procedure in your answer.

Week 11: Criminals and Enemy Combatants - Sallust's Catiline

The Five Things

- Author: Sallust
- Title: `Catiline's War` (`Bellum Catilinae`)
- Date: c. 44-40 BCE
- Location: Rome
- Language: Latin

Why this week matters

This is the course's big Roman case study in how rhetoric, political crisis, and criminality overlap. The central question is whether Catiline is a criminal conspirator or an enemy combatant in a civil war.

Background to the conspiracy

- Catiline is a noble but indebted aristocrat.
- Roman politics is split between `optimates` and `populares`.
- Debt crisis matters.
- Sulla's civil wars and veteran settlements leave instability in Italy, especially Etruria.
- Gaius Manlius becomes crucial in Etruria.

Core chronology of 63-62 BCE

- 64 BCE: Catiline loses bid for the consulship of 63.
- 63 BCE: Catiline loses again for the consulship of 62.
- July 63 BCE: failed election deepens his crisis.
- October 20: anonymous letters reveal conspiracy.
- October 21: Senate passes the `senatus consultum ultimum`.
- October 27: Manlius raises revolt in Etruria.
- early November: Catiline charged with `vis`.
- November 7: attempted assassination of Cicero fails.

- November 8: Cicero delivers the First Catilinarian.
- mid-November: Catiline declared `hostis`.
- December 3: Allobroges produce evidence; conspirators arrested.
- December 5: Senate advises execution of captured conspirators without trial.
- January 62 BCE: Catiline dies in battle.

Why the legal issue is so important

The captured conspirators were Roman citizens. They should still have had `provocatio`. Cicero executes them without trial under cover of the `SCU`, and that choice later contributes to his exile.

Criminological reading of Sallust

Sallust does not present Catiline simply as a villain. He mixes:

- psychological explanation,
- moral corruption,
- class resentment,
- elite decadence,
- relative deprivation,
- rational calculation,
- charisma and heroism.

Direct passages from the reading as quoted in the lecture script

From the Week 11 lecture, quoting Sallust on the urban plebs:

> "the entire plebs, in its enthusiasm for revolution, approved completely of Catiline's projects"

Why it matters:

- Catiline is not a lone deviant.
- The crisis has a social base.
- This supports a relative-deprivation reading of the conspiracy.

From the Week 11 lecture, Sallust on Crassus:

> "everyone cried that the informant was false ... while very many of them were beholden to Crassus through personal business"

Why it matters:

- Status shapes legal truth.

- Roman political justice is shown as selective and class-bound.
- Power can move a man out of the category of suspect altogether.

From the Week 11 lecture, Caesar's proposal:

> "their money should be confiscated and they themselves held in chains in the municipalities..."

Why it matters:

- Caesar argues against execution without trial.
- He implicitly proposes long-term detention, which is strikingly unclassical.
- He treats the captives more like criminals than battlefield enemies.

From the Week 11 lecture, Cato's deterrence argument:

> "when you decide about P. Lentulus and the others, be assured that at the same time you are issuing a decree about Catiline's army"

Why it matters:

- Cato shifts the frame from prosecution to war.
- He justifies extreme punishment as preemption and deterrence.
- This is the decisive move from "criminal conspiracy" to "enemy threat."

Catiline's contradictory image

Sallust makes Catiline:

- depraved but charismatic,
- criminal but aristocratic,
- socially dangerous but politically comprehensible,
- enemy of Rome but heroic in battle.

At the end he dies bravely, which keeps the category unstable.

Lecture frame in plain English

The chronology topic shows that the Catilinarian crisis unfolds as a rapidly escalating sequence of elections, plots, emergency decrees, arrests, executions, and battle. The debate topic argues that Caesar and Cato are really debating whether the captured conspirators remain punishable citizens or have become war enemies.

Knowing the order of events is essential because the legal arguments depend on when the conspirators are still citizens and when they are treated as enemies. This is the course's clearest Roman case study in the criminal-versus-enemy problem. The chronology matters because emergency narratives build step by step. The continuity lies in the pressure emergency politics places on ordinary procedure.

Key concepts in paragraph form

SCU. The senatus consultum ultimum, the Senate's ultimate emergency decree. It authorizes extreme action in the name of saving the state while leaving legality contested. It is the background for Cicero's later vulnerability and exile.

hostis. Enemy, in a politically and legally charged sense. It pushes a dangerous insider outside ordinary civic protection. The category makes exceptional punishment feel easier to justify.

Relative deprivation. A model explaining crime or rebellion through blocked expectations and frustrated status. It ties support for Catiline to structural grievance rather than isolated wickedness. It helps explain why Sallust presents social causes alongside moral corruption.

MCQ Trap

MCQ Trap: Do not collapse the whole crisis into one moment; the legal and rhetorical framing changes as the timeline advances. Do not turn Caesar into a pure civil-liberties hero or Cato into mere bloodthirst; both are arguing from public-safety logic, but with different frames.

Study questions answered

1. **What are the Five Things?** For the exam, the basic frame is Sallust, Catiline's War, written around 44-40 BCE, set in Rome, and written in Latin. The point of memorizing the Five Things is to anchor the reading in late Republican political crisis rather than treating it as free-floating moral literature.

2. **What social issues lead Catiline toward revolution?** The lecture highlights debt, blocked aristocratic ambition, veteran unrest, and the aftereffects of civil conflict. Sallust therefore presents conspiracy not only as personal wickedness but also as something that feeds on structural grievance and social instability.

3. **What is happening in Etruria?** Etruria is the crucial armed base of the crisis, especially under Manlius. On the exam, treat it as the place where political conspiracy starts to become something closer to open revolt or civil war.

4. **Who is Catiline?** Catiline is an indebted noble, a failed candidate, a charismatic political actor, and an unstable criminal category all at once. Sallust keeps him morally corrupt, socially intelligible, and even heroic in battle, which is why the lecture insists that he cannot be reduced to a one-word label.

5. **Who is Cicero?** Cicero is consul, orator, and the self-fashioned savior of the Roman state. He is also the figure whose later vulnerability shows how dangerous emergency punishment without trial could be, even when it was done in the name of public safety.

6. **How does Sallust explain Catiline's criminality?** Sallust mixes moral corruption, ambition, desire, elite decadence, social crisis, and political grievance. That mixture is the point: Catiline is explained at once through character and through the diseased condition of the Republic.

7. **How does Catiline explain his own turn to crime?** In the lecture's terms, Catiline sounds like a figure of grievance, exclusion, and frustrated entitlement. That makes him useful

for comparison with relative deprivation and rational-choice style explanations, even though Sallust never stops framing him as dangerous.

8. **How do Caesar and Cato relate to crime and punishment?** Caesar resists execution without trial and warns about precedent, but he still imagines harsh detention and control. Cato shifts the frame toward deterrence, war, and political signaling, which is why the lecture treats their disagreement as a debate over whether the captives are still citizens or already enemies.

9. **What is the outcome and lasting issue?** The conspiracy is crushed and Catiline dies in battle, but the legal problem remains unresolved. The lasting issue is when a state may stop treating insiders as citizens subject to procedure and begin treating them as enemies who can be neutralized exceptionally.

Deep study layer

What this lecture is arguing Week 11 argues that the Catilinarian crisis is not only a story about one conspiracy. It is a case study in what happens when a state cannot decide whether to treat dangerous insiders as citizens, criminals, rebels, or enemies. The lecture frames the whole week through modern terrorism discourse in order to show how emergency politics pressures law.

Concept bubbles

- `SCU` (`senatus consultum ultimum`): what it does The `SCU` is not a formal suspension of law, but it authorizes extreme emergency action in the name of saving the state. It creates precisely the ambiguity that later makes Cicero vulnerable.
- `hostis`: what it does Calling someone an enemy pushes him out of the normal civic frame. It does rhetorical work as much as legal work, because it makes extraordinary violence feel necessary.
- `Relative deprivation`: what it does This model explains why Catiline can attract support from debtors, displaced people, and politically frustrated elites. It shifts attention from individual wickedness to structural grievance.
- `Enemy combatant`: what it does This is a modern comparison term, not a Roman technical label, but it helps explain the problem: at what point does a citizen in a domestic conspiracy become someone who may be neutralized outside normal criminal procedure?

Why this matters for crime and punishment This is one of the course's clearest tests of the public/private distinction. If captured conspirators are treated as criminals, procedure and citizen rights matter. If they are treated as wartime enemies, preemption and public safety dominate. The whole later reputation of Cicero turns on that unstable boundary.

Passage dossiers Week 11 lecture quoting Sallust on the plebs:

- Speaker: Sallust as historian and narrator.
- Immediate audience: Sallust's Roman readership.
- Context: he is explaining the wider social atmosphere that makes conspiracy imaginable.

- What the passage is doing: by saying that the urban plebs enthusiastically supported revolution, Sallust widens the crisis beyond one deviant mastermind. Catiline becomes the symptom of a diseased political order, not just an isolated monster.

Week 11 lecture quoting Sallust on Crassus:

- Speaker: Sallust narrating elite reaction to accusations touching Crassus.
- Audience: Sallust's readers.
- Context: evidence and suspicion are filtered through patronage, obligation, and status.
- What the passage is doing: it demonstrates selective credibility. In Rome, elite social power can move a man partly outside suspicion even during a security crisis.

Caesar's proposal:

- Speaker: Julius Caesar in the Senate debate of 5 December 63 BCE.
- Immediate audience: senators deciding the fate of the captured conspirators.
- Context: the men are already in custody, and the state must decide between execution and some other punishment.
- What the passage is doing: Caesar warns against irreversible precedent, immediate passion, and the political danger of letting the state execute citizens without due process. His proposal still imagines harsh control, but within a frame closer to punishment than battlefield annihilation.

Cato's response:

- Speaker: Cato in the same Senate debate.
- Immediate audience: senators, but also indirectly Catiline's supporters beyond Rome.
- Context: the conspiracy is active, Catiline is still in the field, and the Senate fears appearing weak.
- What the passage is doing: Cato turns sentencing into signaling. The decision about the prisoners becomes a message to the army in Etruria, which is why he frames leniency as military and political failure.

Ancient vs modern comparison The lecture invites comparison to homeland-security logic, preventive detention, covert surveillance, and the claim that terrorism is too dangerous to wait for completed action. The strongest modern comparison is not "Catiline was exactly a terrorist." It is that both ancient and modern states face pressure to move from proof and trial toward suspicion, preemption, and exceptional punishment when leaders can plausibly say the whole community is at risk.

Exam traps and likely comparison questions

- Do not turn Caesar into a modern civil-liberties saint. He is restrained relative to Cato, but he still recommends severe control.
- Do not say the `SCU` simply made executions legal. The controversy exists precisely because legality remained contestable.

- A likely exam question is whether Catiline should be read as criminal, political rebel, or enemy. The best answer is that Sallust and the lecture both insist on the instability of the category.

Week 12: Character and Ciceronian Crime - Pro Caelio

The Five Things

- Author: Marcus Tullius Cicero
- Title: `In Defense of Marcus Caelius` (`Pro Caelio`)
- Date: 56 BCE
- Location: Rome
- Language: Latin

Background to the case

- Caelius is charged with `vis`, political violence.
- Prosecutors: Atratinus, Publius Clodius, and Herennius Balbus.
- Defense: Caelius, Crassus, and Cicero.
- The wider background involves Egyptian politics, Ptolemy XII, the Alexandrian embassy, and the death of Dio.
- Clodia, Caelius' former lover, becomes central to Cicero's version of events.

Why the charge matters

`Vis` is supposed to cover dangerous violence against the state, not private scandal. Cicero's whole strategy is to make the jury think the charge is absurdly overblown.

Cicero's main strategy

He does not focus primarily on reconstructing facts. He:

- turns the trial into comedy;
- turns Caelius into a charming young hero;
- turns Clodia into the scandalous manipulator behind the prosecution;
- makes the case about character instead of action.

Direct passages from the reading

From `Cicero In Defense of Marcus Caelius.pdf`, opening section:

> "If somebody were here who knew nothing about our laws, our courts, and our customs, he would certainly wonder what crime could be so vicious ... this one court should be in session."

Why it matters:

- Cicero opens by exaggerating the seriousness of the legal frame.
- He then undercuts it by suggesting the charge of `vis` is wildly disproportionate to the real case.
- He prepares the jury to see the prosecution as theatrical overreach.

From `Cicero In Defense of Marcus Caelius.pdf`, on the charges:

> "There are two charges. One involves gold, the other poison; in both of them one and the same person is concerned."

Why it matters:

- Cicero narrows the case to Clodia-centered allegations.
- He tries to strip away the public-crime frame and recast the prosecution as a private vendetta.

From `Cicero In Defense of Marcus Caelius.pdf`, on Clodia's narrative:

> "This whole tale, for instance, belongs to an aging lady poet who has written a lot of comedies - but it has no plot and no ending."

Why it matters:

- Cicero accuses the prosecution of theatrical fabrication while doing theatrical fabrication himself.
- This is a perfect example of rhetorical projection.

From `Cicero In Defense of Marcus Caelius.pdf`, section 70:

> "Members of the jury, my case is said and done ... This is the law under which this young man Caelius is being prosecuted not to exact punishment on behalf of the commonwealth but on behalf of the sexual perversions of this woman."

Why it matters:

- Cicero returns to the seriousness of the `vis` law.
- He argues that the state is being misused for private erotic revenge.
- He fuses legal argument, misogyny, and comic performance.

From the Week 12 lecture script, quoting Cicero's description of Catiline:

> "he could alter his character and direct it for the occasion, twisting and bending it in all directions"

Why it matters:

- Cicero uses Catiline's adaptability to excuse Caelius' youthful association with him.
- This shows how flexible courtroom rhetoric can be: last week's monster becomes this week's useful comparison.

What the lecture wants you to notice

- Cicero makes a public-crime case look like sex comedy.
- He uses family, class, sexuality, and gender performance to assign criminality.
- He relies on what looks very much like positivist thinking: good families produce good citizens, corrupt households produce corrupt actors.
- The case also reveals a larger Roman shift toward treating unauthorized violence as violence against the state.

Riggsby's contribution

The lecture uses Andrew Riggsby to argue:

- Cicero replaces a judicial frame with a theatrical one.
- Metaphor changes what outcomes feel "natural."
- The law on `vis` helps show the Roman state's growing monopoly on legitimate force.

Lecture frame in plain English

The background topic shows that the Caelius trial is entangled with Egyptian diplomacy, elite rivalry, and the afterlife of the Catilinarian moment. The strategy topic argues that Cicero wins by theatrical substitution: he moves the case from state-danger narrative to comic-performance narrative. The criminality topic argues that Pro Caelio is about character, family, sexuality, and state control of violence at least as much as it is about factual guilt.

The charge does not make sense if you strip it out of late Republican politics and the Dio affair. It is the clearest Roman demonstration that genre and persona can do legal work. It brings together rhetoric, public/private wrong, gendered blame, and the Roman move toward stronger public claims over force. The public-private tension is part of the case, not background noise. The techniques change, but the struggle over interpretive frame remains familiar. The difference is partly one of overtness, not the disappearance of character-based reasoning.

Key concepts in paragraph form

vis. A public-law category of force or violence threatening civic order. It lets Rome frame certain unauthorized actions as attacks on the commonwealth. Cicero's defense depends on making this category look absurdly misapplied.

Megalensia. The festival setting during which public games and dramatic performances were happening. It gives Cicero a stage-like frame for turning the courtroom into a theater. The holiday setting is part of the speech's persuasive strategy, not a random detail.

Theatrical substitution. Replacing one interpretive frame with another more emotionally persuasive one. It makes jurors feel that one narrative genre fits the case more naturally than another. Cicero uses it to turn a public-law case into a comedy of youthful indiscretion and malicious plotting.

Character evidence. Reasoning from the kind of person someone is said to be rather than only from the specific act alleged. It makes social identity do evidentiary work. Cicero's portrait of Caelius and Clodia drives the entire defense.

State monopoly on violence. The gradual claim that legitimate force belongs increasingly to public authority. It turns private violence into a problem for the commonwealth. The law on vis is one of the clearest Roman markers of that shift.

MCQ Trap

MCQ Trap: Do not describe Pro Caelio as only a sex scandal; the legal charge is public violence, even if Cicero works hard to privatize it. Do not say Cicero proves the facts first and performs second; the performance is one of the main proofs. Do not treat Clodia only as a historical figure; in the speech she is also a rhetorical construction designed to absorb blame.

Study questions answered

1. **What are the Five Things?** The exam frame is Cicero, Pro Caelio, delivered in 56 BCE at Rome in Latin. Those facts matter because the speech belongs to the late Republic, to a law court on vis, and to a political culture in which rhetoric, festival atmosphere, and elite scandal all overlap.

2. **What are the background issues of the trial?** The lecture places the case inside Egyptian diplomacy, the Alexandrian embassy, the death of Dio, and the aftershocks of late Republican instability. A good answer makes clear that the trial is not merely a private quarrel but a public prosecution entangled with politics and foreign affairs.

3. **Who is on the prosecution team?** Atratinus, Publius Clodius, and Herennius Balbus form the prosecution side. The important point is not only the names but the fact that Cicero turns their case into something that looks dependent on Clodia's scandalized narrative.

4. **Who is on the defense team?** Caelius, Crassus, and Cicero appear for the defense, with Cicero serving as the climactic speaker. On the exam, connect that role to performance: Cicero is not simply arguing doctrine but controlling the whole emotional frame of the trial.

5. **Who is Cicero in this trial?** He is the final defense speaker and the architect of the speech's theatrical strategy. The lecture treats him as someone who wins not mainly by technical refutation but by making one story feel comic, natural, and socially legible while making the rival story feel ridiculous.

6. **How does Cicero characterize Caelius?** Cicero presents Caelius as talented, socially acceptable, and guilty only of ordinary youthful excess. That characterization matters because it turns character itself into evidence and makes the jurors feel that Caelius belongs inside elite normality rather than inside the category of dangerous offender.

7. **Who is Clodia and what role does she play?** Historically she is an elite Roman woman and Caelius' former lover; rhetorically she becomes the speech's central scapegoat. The lecture stresses that you must treat her as both a person and a constructed comic type, because Cicero wins partly by collapsing those two levels together.

8. **What is the relationship between Caelius and Catiline?** Caelius had connections to Catiline's circle, and that association is dangerous after the events of Week 11. Cicero's answer is to present Catiline as so deceptive and protean that even association with him no longer proves Caelius' guilt.

9. **What is Cicero's legal strategy and what theory does it resemble?** His strategy is to replace a strict public-law frame with character, genre, ridicule, and theatrical substitution. That resembles positivist or stereotype-based thinking because it asks the jury to decide what kind of people Caelius and Clodia are before deciding what happened.
10. **How are elements of this trial still visible today?** The lecture points to media spectacle, celebrity scandal, sexual double standards, character assassination, and metaphor-driven politics. The strongest comparison is that modern trials still compete in public culture through branding, persona, and story, even when formal doctrine pretends to be more controlled.

Deep study layer

What this lecture is arguing Week 12 argues that `Pro Caelio` is a criminal-defense speech in which genre does as much legal work as doctrine. Cicero does not mainly win by disproving every allegation in a technical way. He wins by relocating the case from the severe world of public violence into the comic world of sex scandal, youthful error, and malicious ex-lover narrative.

Concept bubbles

- `vis`: what it does The law on `vis` marks certain force as a threat to public order and the commonwealth. It is one of the clearest Roman signs that the state is claiming violence for itself.
- `Megalensia`: what it does The holiday setting gives Cicero a ready-made theatrical frame. He can remind jurors that they should be at the theater and then make the courtroom behave like one.
- `Character evidence`: what it does Instead of asking only what happened, Cicero asks what kind of person Caelius and Clodia are. This lets social identity substitute for proof.
- `Theatrical substitution`: what it does Cicero replaces one interpretive frame with another: not armed public danger but comic intrigue; not state crisis but elite domestic scandal.

Why this matters for crime and punishment This week brings together almost every major course theme: rhetoric, status, sexuality, public versus private wrong, character-based criminality, and the growth of the state's claim to regulate force. It is also the clearest Roman parallel to `Lysias 1`, because both speeches try to make the jury feel that the formal charge is not the real moral story.

Passage dossiers `Pro Caelio [1]`

- Speaker: Cicero in person, as final defense speaker.
- Immediate audience: Roman jurors sitting during the Megalensia.
- Broader audience: the public culture of Rome, which knew how serious a `vis` court was supposed to be.
- Context: a holiday trial under a law designed for major civic violence.
- What the passage is doing: Cicero opens by inflating the seriousness of the legal frame only so he can ridicule its application to Caelius. He captures attention and plants the idea of prosecutorial

overreach.

`Pro Caelio`, "There are two charges"

- Speaker: Cicero.
- Audience: jurors.
- Context: he is stripping away surplus slander and recentering the case on allegations involving gold and poison tied to Clodia.
- What the passage is doing: the move narrows the case, privatizes it, and makes the prosecution look more like a personal quarrel than a public emergency.

`Pro Caelio [64]`, the "aging lady poet"

- Speaker: Cicero.
- Audience: jurors who understand comic convention and sexual insult.
- Context: Clodia has become the crucial engine of the prosecution in Cicero's retelling.
- What the passage is doing: he converts Clodia from witness or injured party into a stock comic type. This is brutal gendered rhetoric, and it matters because once she is turned into genre, her factual claims become easier to dismiss.

`Pro Caelio [70]`

- Speaker: Cicero near the end of the defense.
- Audience: jurors deciding under a law on political violence.
- Context: after much mockery and character work, Cicero briefly returns to the actual seriousness of the statute.
- What the passage is doing: he argues that a law made for armed attacks on the state is being hijacked for private erotic revenge. The line is powerful because it fuses public-law seriousness with misogynistic scapegoating.

Catiline passage in Cicero's speech:

- Speaker: Cicero describing Catiline.
- Audience: jurors who remember the Catilinarian crisis.
- Context: Caelius' former association with Catiline is a serious liability.
- What the passage is doing: Cicero repurposes last week's villain. Catiline becomes so protean and deceptive that Caelius can be excused for once having been near him.

Ancient vs modern comparison The strongest modern parallel is the media-saturated trial in which evidence competes with persona, scandal, sexual morality, and narrative branding. Modern courts generally constrain overt attacks on a woman's sexual character more than Cicero's Rome did, but public discourse still repeatedly turns legal controversies into stories about lifestyle, charisma, and "who these people really are."

Exam traps and likely comparison questions

- Do not say Cicero simply proves Caelius innocent. The brilliance of the speech is that it often avoids fact-heavy proof altogether.
- Do not treat Clodia only as a historical person and ignore that she is also a rhetorical construction.
- A likely comparison question is how `Pro Caelio` resembles `Lysias 1`. A strong answer focuses on character construction, jury identification, and the displacement of strict legal analysis by a more emotionally compelling story.

Cross-Course Comparison Table

Topic	Greek material	Roman material	Why it matters
Public/private distinction	Homicide can remain private	Many violent matters remain outside strong public prosecution for a long time	Modern criminal law is not universal
Self-help	Draco regulates it	Patron-client structure and weak policing preserve it	Ancient states do not fully monopolize force
Rhetoric	Lysias and Gorgias	Sallust and Cicero	Persuasion constructs criminality
Punishment	exile, blood vengeance, civic adjudication	exile, fines, execution, later stronger criminal courts	Prison is not the default ancient answer
Character versus act	seducer, adulterer, tyrant	Catiline, Clodia, Caelius	The person often matters more than the legal category
Insider versus outsider	household polluter, tyrant, seducer	citizen conspirator, aristocrat, enemy combatant	The threat often comes from within
Evidence and proof	witnesses, oaths, narrated household scenes	statutes, speeches, senatorial debates, reputation	Facts rarely appear without rhetorical framing
Emergency power	divine and kin pressure before stable institutions	`SCU`, `hostis`, courts on `vis`	Security crises put pressure on ordinary procedure
Gender and crime	Clytemnestra, adulterous wife, seduced household	Clodia, elite women, comic and sexualized blame	Gender often becomes a shortcut for explaining danger
Monopoly on violence	incomplete, contested, emerging	increasingly centralized in public law	A major course arc is the slow move from regulated self-help to stronger state claims

High-Yield Terms to Memorize

Greek

- `nomos`
- `dike`
- `graphe`
- lethal self-help
- Areopagus
- Socrates
- rhetoric
- `physis`
- `nomos` as convention

Roman

- `imperium`
- `intercessio`
- `provocatio`
- Twelve Tables
- `praetor urbanus`
- `praetor peregrinus`
- `ius honorarium`
- `senatus consultum`
- `senatus consultum ultimum`
- `quaestio`
- `quaestio perpetua`
- `repetundae`
- `maiestas`
- `ambitus`
- `vis`
- `hostis`
- `ius respondendi`
- `Corpus Iuris Civilis`
- `honestiores`

- `humiliores`
- delict

Full Glossary Appendices

These glossary definitions are condensed study shorthand adapted from `course-materials/misc/Greek_Law_Wiki` and `course-materials/misc/roman glossary.pdf`. Use them for quick review, not as a replacement for official course definitions.

Greek Glossary

- `Agon`: Formal dispute scene in Greek tragedy or comedy.
- `Anakrisis`: Pre-trial hearing where the magistrate read the complaint and asked for admission or denial.
- `Apagoge`: The procedure by which the volunteer prosecutor arrests the defendant first and then brings him to the competent official.
- `Apagoge, ephegesis, endeixis, apographe, eisangelia, probole, dokimasia, euthynai`: Types of public cases that volunteer prosecutors could bring, often called "summary procedures.".
- `Apographe`: The procedure by which the volunteer prosecutor lists property that is wrongfully held by the defendant, property that rightfully belongs to the State.
- `Apotumpansimos`: The act of exposing the convicted individual by securing his neck, wrists, and ankles to a vertical wooden plank (another form of the death penalty).
- `Archon`: Chief magistrate at Athens.
- `Archon Basileus`: Archon responsible for religion, homicide, and deliberate wounding cases.
- `Archon Eponymous`: Archon responsible for property, family matters, and key festivals; the year was named after him.
- `Archon Polemarchus`: Archon responsible for cases involving non-Athenians.
- `Areopagus`: Aristocratic council and court for intentional homicide and other grave offenses.
- `Barathon`: The pit into which the convicted individual would be hurled (for death penalties).
- `Boedromion & Mounikhion`: Certain actions/cases could only be brought out between specific months.
- `Boule`: Council of 500 citizens that prepared business for the assembly.
- `De novo`: A Latin expression meaning "from scratch", "from the beginning".
- `Delphinion`: Homicide cases were tried in this court when the defendant was asserting an affirmative defense (arguing that the homicide was excused on a grounds of assumption of risk, self-defense, defense of property, etc.).
- `Diamartyria`: Literally "on the account of a testimony", "through testimony".

- `Dikai emporikai`: Mercantile cases that applied to both citizens and non-citizens and could only be initiated if the dispute at issue pertained to an alleged breach of a written contract that either: had been concluded in the Athenian...
- `Dikastai/dikastes`: Jurors.
- `Dikastic oath`: An oath that each dikastes (juror) was required to swear in order to be eligible to serve as a juror.
- `Dike`: Private suit or case brought by the wronged individual.
- `Dike aikeias`: A charge of assault or battery (the Athenians didn't distinguish between the two).
- `Dike biaien`: A cause of action for theft by force.
- `Dike blabes`: A case for damage to property or breach of contract; a cause of action used to rectify/correct a variety of civil wrongs, e.g.
- `Dike exoules`: An additional fine paid by the defendant to the state if the defendant failed to pay the plaintiff what was due.
- `Dike heirgmou`: A charge for false imprisonment/confinement.
- `Dike kakegorias`: An action brought out for slander/defamation.
- `Dike klopes`: A cause of action for simple theft.
- `Dokimasia`: A hearing where a candidate might be qualified from citizenship, public office or speaking in the Ekklesia.
- `Eisagogeis`: Monetary cases related to loans and banking.
- `Eisangelia`: Public denunciation procedure used for treason, betrayal, and other injuries to the state.
- `Ek pronoias`: The Greek term meaning "intentionally," "with forethought," "with design," "purposely." A homicide that could be described by this term was punishable by death and the confiscation of the murderer's property.
- `Ekklesia`: Assembly of Athenian citizens.
- `Endeixis`: The procedure by which the volunteer prosecutor first explains the charge to the magistrate and is then authorized to make the arrest.
- `Ephegesis`: The procedure by which the volunteer prosecutor leads the magistrate to the defendant for arrest.
- `Ephetai`: A special court of 51 men over the age of 50 who tried homicide cases in four distinct courts: the Delphinion; the Palladion; the Prytaneion; the Phreatto.
- `Epimeletai tou emporiou`: Cases involving the sale of grain in the whole sale market that was conducted in the Athenian port, the Piraeus, at the Emporion.
- `Euthynai`: Review of performance in public office.
- `Exegetai`: (="expounders") Religious officials who memorized sacred laws so that they could advise others about the laws.

- `Graphe`: Public action brought on behalf of the community.
- `Graphe moicheias`: A private case against a rapist.
- `Graphe paranomon`: A "prosecution for illegalities" used to block decrees that contradicted or conflicted with established laws.
- `Heken`: This term also means "intentionally." A homicide that could be described by this term was punishable by death and the confiscation of the murderer's property.
- `Hekousios`: This term also means "intentionally," or "voluntarily." A homicide that could be described by this term was punishable by death and the confiscation of the murderer's property.
- `Heliaia`: Judicial sitting of the Athenian assembly or people's court.
- `Hierosylia`: The act of robbing from a temple (which could be punished by death).
- `Hubris`: Abusive, arrogant, degrading conduct that could ground prosecution.
- `Kakourgoi`: A cause of action for serious theft, e.g. thieves who stole at night, stole from a gymnasium, stole more than 10 drachmas from a harbor or stole more than 50 drachmas from anywhere else.
- `Klepsydra`: A water clock that kept track of the time allotted for each speech.
- `Kleroterion`: An allotment machine used to sort black and white balls for jury selection.
- `Kyrios`: Legally responsible adult male guardian of a woman or child.
- `Lex`: The Latin term for law or statute.
- `Lex talionis`: (Latin) Law of retribution; an eye for an eye; follow for follow or rather, retaliatory retribution.
- `Logographoi`: Speechwriters who composed court speeches for litigants.
- `Martyria`: A testimony.
- `Miasma`: Pollution caused by homicide that could spread through the community.
- `Nautodikai`: Judge of sailors who handled cases involving Athenians who either lived overseas or sailed as mariners or merchants.
- `Nomos/Nomoi`: Greek law or custom; later also written statute.
- `Nomothetai`: Lawgivers or legislators who approved laws after assembly votes.
- `Palladion`: Court used for unintentional homicides or when the victim was either a slave or foreigner.
- `Paragraphe`: A procedural challenge; "prosecution in opposition", "counter prosecution"; a technical legal mechanism employed by defendants.
- `Phreatto`: Where cases were heard when the accused had already been convicted and exiled for a prior homicide.
- `Pinakion`: A wooden or bronze "ticket" that had each juror's name on it and one of the first ten letters of the alphabet.

- `Poine`: A payment.
- `Polis`: Greek city-state understood as a political community, not just a place.
- `Probole`: A preliminary hearing at the Ekklesia regarding official misconduct.
- `Prodikasiai`: Pre-trial conferences; a procedural stage for homicide trials.
- `Prodosia`: A public-wrong charge used against generals for losing ships, troops, or territory.
- `Prosklesis`: A summons or "call to court"; the summons had to alert the defendant to three facts: 1.
- `Prytaneia`: A filing fee which the plaintiff/prosecutor had to pay.
- `Prytaneion`: Court used for cases where death was caused by an unknown person (i.e.
- `Pseudomartyrion`: A false testimony or perjury. A dike pseudomartyrion is a charge/prosecution for bearing false testimony.
- `Strategoi`: Board of generals with military jurisdiction.
- `Sychophants`: Volunteer prosecutors who brought cases for profit, prestige, or leverage.
- `Synegroi`: (="supporting speakers") Public prosecutors who brought actions against men who were acting in an official capacity.
- `The Eleven`: Dealt with suits involving kakourgoi and cases that required the defendant to be incarcerated while awaiting trial.
- `The Forty`: Judges who heard majority of the private cases brought by means of a dike (except under the jurisdiction of the Archon, Thesmothetai, or some other specialized court).
- `Thesmothetai`: Officials responsible for many graphe and dike cases.
- `Trauma ek pronoias`: Wounding with intent to kill; deliberate armed battery.
- `Xenodikai`: Judges of foreigners (Abolished around 350 BCE).

Roman Glossary

- `Abigeatus`: Rustling; a specific subspecies of theft.
- `Absolvo`: Acquittal.
- `Actio de posito et suspenso`: "an action relating to something that has been placed or hung out".
- `Actio de rebus effusis vel deiectis`: "an action relating to things which have been thrown out" This action was carried out against the owner of the property from which things were thrown or poured onto a street.
- `Actio servi corrupti`: This action concerned situations where a person influenced another's slave in a negative manner.
- `Actus reus`: Criminal act; an essential element for a crime in Roman law.
- `Ad agendum`: To prepare a case for the court (Latin meaning: agere is the verb used to plead a

case before the court).

- `Ad cavendum`: To draft documents; the process of drafting written formulae for lawsuits or business transactions.
- `Ad respondendum`: To answer legal questions and give legal advice; the private function of a lawyer to explanation to a praetor, aedile, judge, or layperson what a particular law meant.
- `Aedile`: Roman magistrate who supervised archives, public works, streets, and the marketplace.
- `Ambitus`: Criminal conduct related to elections such as bribery and other types of electoral corruption.
- `Apud iudicem`: The time a case would be heard by a judge.
- `Augurs`: Augurs were in charge of the auspices and augury. They had the power to delay or prohibit public business.
- `Calumnia`: Bringing false criminal charges as an accuser.
- `Censor`: Magistrate who ran the census and assessed the social and moral standing of Roman citizens.
- `Centumviri (100 men)`: Large juries used for disputes involving inheritance of large estates of nobles or the rich.
- `Civis`: Latin for citizen.
- `Cognitio extraordinario / Cognitio extra ordinem`: Extraordinary post-classical procedure in which one official heard the whole case instead of splitting it into separate phases.
- `Comitia`: An assembly.
- `Comitia centuriata`: The assembly compromising all Roman citizens organized into "centuries". It was organized by wealth.
- `Comitia curiata`: During the Republic it served mostly to witness and perhaps authorize wills and adoptions. It operated in the Monarchy but we don't know the details.
- `Comitia tributa`: The comitia tributa was organized by the location of residence and they vote in an order determined by lot.
- `Concilium plebis`: An assembly of all plebeians organized by tribe and presided over by the tribunes of the plebs.
- `Condemnatio`: This is another part of the typical formula. It is the instruction to judge to either find the defendant liable or not based upon an application of the formula to his findings of fact.
- `Condemno`: A conviction.
- `Contiones`: Public meetings Where debating and public discussion took place.
- `Cursus honorum`: A regular order of elected offices which was established after the Second Punic War.
- `Damnum iniuria datum`: Property damage.
- `De residuis`: Embezzlement of entrusted money.

- `Decreta`: Legal decisions rendered by the emperor in any given case that had been brought before him.
- `Delictum`: Crime or unintentional tort.
- `Dolus`: Criminal intent.
- `Edictum perpetuum`: Julianus, the jurist under the reign of Emperor Hadrian (117-138 CE) put the praetorian and aedilician edicts into their final forms. Later classical Roman jurists referred to Julianus' frozen version of the...
- `Effractores`: Burglars who broke into apartments.
- `Equites (singular: eques )`: They bid on contracts with the senate or with magistrates to carryout public business like the collection of taxes (publicani).
- `Exceptio`: An exceptio is an example of one of the legal institutions that Roman praetors created. It is a method of protecting rights kind of like a defense to an action.
- `Expilatores`: Thieves who ransacked homes in the countryside.
- `Falsum`: Forgery.
- `Flagrante delicto`: (literally,"in blazing offence"); caught red handed.
- `Furtum manifestum`: The thief is caught in the action. The penalty was to be beaten and then the perpetrator was handed over to the victim of the theft as a slave or bondsman.
- `Furtum nec manifestum`: The thief is not caught in the action.
- `Glossa`: Comments and laws.
- `Honestiores`: More privileged citizens (for example army veterans).
- `Imperium`: The power to command held by senior Roman magistrates.
- `In iure`: The first phase of Roman procedure, conducted before the praetor.
- `Iniuria`: Personal injury to reputation, dignity, honor, or bodily integrity.
- `Inscriptio`: The court president wrote down an inscriptio for the prosecutor to sign.
- `Institutiones`: An official textbook on Roman law and a functional code that could be consulted for subsequent decisions.
- `Intentio`: This is another part of the typical formula (written instruction). It is the statement of the plaintiff's claim and the most important section of every formula.
- `Intercessio`: Veto power used against magistrates of equal or lower status.
- `Interdictio aquae et ignis`: Banishment/exile; literally "prohibition of water and fire".
- `Iudex`: Latin for "judge". One of the most important officials involved in the development of the legis actiones system.
- `Iudex qui litem suam fecit`: "a judge who has made a case his own". One of the quasi-delicts.
- `Iudicis nominatio`: This is one part of the typical formula which nominates a judge.

- `Ius Aelianum`: A collection of judicial formulae for lawsuits, dating to ca. 200 BCE.
- `Ius Flavianum`: A collection of formulae for lawsuits, dating to ca. 300 BCE.
- `Ius gentium`: Literally, "law of the peoples/nations". The praetor peregrinus used this law between a Roman citizen and a foreigner or between two foreigners who were involved in a dispute on Roman soil.
- `Ius honorarium`: The law that resulted from the praetors' edicts. It was used to distinguish law based on the praetor's edict from more formal legislation.
- `Ius occidendi`: The right of killing; stems from the power of the paterfamilias over members of his family.
- `Ius privatum`: Included rules of property, succession, contracts, and laws relating to the family; deals with the interests of separate persons (according to the Roman Jurist Ulpian).
- `Ius publicum`: A body of laws that deals with interests of the entire community (according to Roman Jurist Ulpian).
- `Ius respondendi ex auctoritate principis`: (sometimes referred to simply as the ius respondendi); the law of responding from the authority of the princeps (emperor).
- `Ius vocatio`: The act of bringing a defendant before the praetor by a formal summons initiated in the in iure phase.
- `Laudatores`: Character witnesses.
- `Leges`: Statutes adopted by the populus romanus; designed to honour the honour the mos maiorum.
- `Legis actiones`: The early form of civil procedure; "suits/actions of law".
- `Lenocinium`: Any conduct that facilitated sexual crime.
- `Lex Aquilia`: Plebiscite governing wrongful damage to property, especially injury to another person's slaves or animals.
- `Lex Calpurnia`: Law of 149 BCE that created the first permanent jury court and helped launch the quaestiones perpetuae.
- `Lex Canuleia`: A law passed in 445 BCE which gave plebeians the right of intermarriage with the patricians.
- `Lex Cornelia de iniuriis`: A law that created what amounted to a criminal cause of action against persons for hittng others or for forcefully breaking into another's home.
- `Lex Cornelia nummaria`: The earliest Roman law to criminalize the counterfeiting of money.
- `Lex Fabia`: A law that criminalized the sale of a Roman citizen, freedman, or slave who belonged to someone else.
- `Lex Hortensia`: Law of 287 BCE making plebiscites binding on all Roman citizens.
- `Lex Iulia de adulteriis coercendis`: Augustan law punishing adultery and giving the paterfamilias limited rights in flagrante delicto.
- `Lex Ogulnia`: (300 BCE) The law that allowed plebeians to be pontifices.

- `Lex Pompeia`: (55 BCE) The first statute that criminalized parricide as an offense distinct from ordinary murder.
- `Lex talionis`: A law on retribution; essentially the equivalent of "an eye for an eye".
- `Licinian Sextian law`: (367 BCE) this law allowed one of the two consuls elected every year had to be a plebeian.
- `Litis contestatio`: The appearance of parties before the praetor to initiate a suit.
- `Maiestas`: Treason–Maiestas included a number of illegal activities: armed assault on the State; gathering soldiers or conducting warfare without the State's permission; desertion.
- `Maius imperium`: The "greater power to command", held by a more senior magistrate (i.e.
- `Mancipatio`: The act of transferring res mancipi e.g. land, slaves, cattle, horses, mules, donkeys.
- `Mens rea`: "a guilty mind".
- `Mos maiorum`: Customs of their (Romans') ancestors.
- `Nominis delatio`: =(denunciation of the name) The trial began with a nominis delatio attended by both prosecutor and defendant.
- `Novella`: New laws that were adopted after the Corpus Iuris had been written.
- `Obligatio/obligationes`: This entailed some relationship between two persons in which one was a creditor and the other debtor.
- `Paterfamilias`: The father of the family; the head of the household.
- `Peculatus`: A kind of embezzlement; any wrongful appropriation, diversion, or conversion of sacred, religious, or public funds.
- `Per formulam`: The formulary procedure which replaced the legis actiones in the beginning of the 2nd century B.C.
- `Perduellio`: This term also refers to treasonous conduct but it was used more in the earlier Republic.
- `Plagium`: Kidnapping.
- `Plebiscita (singular: plebiscitum )`: Enactments of the concilium plebis that became binding on all Rome after the lex Hortensia.
- `Pontifices`: Pontiffs (priests) had access to the archives containing the specialized legal forms and phrases that were necessary to conduct a law suit.
- `Populus Romanus`: The Roman people.
- `Praefectus vigilum`: Prefect of the Night Watch.
- `Praescriptio`: A general comment concerning the wrong.
- `Praetor`: Roman magistrate responsible for the judiciary, annual edicts, and legal formulae.
- `Praetor peregrinus`: Praetor who handled disputes involving foreigners.
- `Praetor urbanus`: Praetor who handled disputes involving Roman citizens.

- `Praevaricatio`: A criminal offence for an accuser to hide legitimate charges.
- `Provocatio`: Right to appeal a magistrate's summary judgment to the Roman people.
- `Quaestio de repetundiis`: Court for extortion by provincial governors.
- `Quaestiones perpetuae`: Permanent Roman criminal courts for recurring categories of public wrong.
- `Quaestors`: Financial officials.
- `Rapina`: Robbery with violence.
- `Recuperatores`: Recoverers three to five judges instead of a single iudex.
- `Repetundae`: Provincial extortion and abuse of office for private gain.
- `Restitutio`: One of the legal institutions created by the Roman praetors.
- `Saccularii`: Thieves who slit pockets and purses to empty their contents.
- `Sanctio`: The negative consequences which resulted from a person's violation of the praescriptio.
- `Sciens dolo malo`: "knowingly and with malicious intent".
- `Senatus Consulta`: Advice or resolutions issued by the Senate.
- `Sententia`: The opinion of the judge (iudex).
- `Stellionatus`: Any conduct that was dishonest or fraudulent and did not fit neatly into another defined criminal category could be dealt as stellionatus.
- `Stipulatio`: A face to face contract that originally required one party to ask "Do you promise" and the other to respond "I promise".
- `Stuprum`: An illegal crime which occurred when a man acting sciens dolo malo had sexual relations with a "respectable" unmarried girl or woman or boy.
- `Tergiversatio`: A criminal offence for an accuser to abandon charges once formally begun.
- `Tresviri capitalis`: Handled cases involving theft.
- `Tripertitia`: A major work published by Sextus Aelius Paetus. It was the first attempt at a systematic treatment of Roman law.
- `Vis`: Force or violence treated as a public crime, often punished by exile or death.

Final Exam Focus: What to prioritize in the last review pass

Highest priority

- Week 10 Roman law terms, institutions, assemblies, procedures, and codification
- Week 11 Catiline chronology, `SCU`, `hostis`, Caesar versus Cato
- Week 12 `Pro Caelio`, `vis`, Cicero's theatrical strategy, Clodia, and character-based criminality

Second priority

- Week 7 Draco's law and Lysias' defense strategy
- Week 8 Socrates versus Polus and Callicles
- Week 6 criminology definitions and theories

Foundation priority

- Week 1 public/private distinction, exile versus prison, Foucault
- Week 2 chronology
- Week 3 Greek-law vocabulary
- Week 4 `Oresteia` as movement from vengeance toward civic justice

Final Checklist

- Can you explain why murder is not simply a "crime" in the same way in classical Athens?
- Can you explain the difference between a homicide exception and a death penalty?
- Can you define `vis` and explain why it matters in both Week 11 and Week 12?
- Can you explain why the Twelve Tables matter for Roman legal history?
- Can you explain the difference between `leges`, `plebiscita`, praetorian edicts, and juristic writings?
- Can you explain why Caesar and Cato disagree about the Catilinarian conspirators?
- Can you explain how Cicero turns a criminal prosecution into comedy?
- Can you connect ancient material to modern criminological theories without claiming the two worlds are identical?

If you can answer those clearly, you are covering the spine of the course.

Glossary Practice Questions

Greek Glossary Drill

1. Given the definition, what is the correct greek term? "Archon responsible for property, family matters, and key festivals; the year was named after him." - A. `Archon Eponymous` - B. `Boule` - C. `Archon Polemarchus` - D. `Areopagus`
2. Given the definition, what is the correct greek term? "Legally responsible adult male guardian of a woman or child." - A. `Logographoi` - B. `Kyrios` - C. `Nomos/Nomoi` - D. `Polis`
3. Given the definition, what is the correct greek term? "Council of 500 citizens that prepared business for the assembly." - A. `Boule` - B. `Heliaia` - C. `Ekklesia` - D. `Nomothetai`
4. Given the definition, what is the correct greek term? "Private suit or case brought by the wronged individual." - A. `Dike` - B. `Archon Basileus` - C. `Archon` - D. `Trauma ek pronoias`

5. Given the definition, what is the correct greek term? "Lawgivers or legislators who approved laws after assembly votes." - A. `Strategoi` - B. `The Eleven` - C. `The Forty` - D. `Nomothetai`
6. Given the definition, what is the correct greek term? "Board of generals with military jurisdiction." - A. `Thesmothetai` - B. `The Eleven` - C. `Strategoi` - D. `The Forty`
7. Given the definition, what is the correct greek term? "Chief magistrate at Athens." - A. `Archon Basileus` - B. `Archon` - C. `Archon Polemarchus` - D. `Archon Eponymous`
8. Given the definition, what is the correct greek term? "A procedural challenge; "prosecution in opposition", "counter prosecution"; a technical legal mechanism employed by defendants." - A. `Paragraphe` - B. `Graphe` - C. `Prosklesis` - D. `Eisangelia`
9. Given the definition, what is the correct greek term? "Archon responsible for religion, homicide, and deliberate wounding cases." - A. `Archon Polemarchus` - B. `Archon Eponymous` - C. `Archon Basileus` - D. `Areopagus`
10. Given the definition, what is the correct greek term? "Public action brought on behalf of the community." - A. `Trauma ek pronoias` - B. `Graphe` - C. `Archon` - D. `Dike`
11. Given the definition, what is the correct greek term? "Archon responsible for cases involving non-Athenians." - A. `Areopagus` - B. `Archon Polemarchus` - C. `Boule` - D. `Ekklesia`
12. Given the definition, what is the correct greek term? "A summons or "call to court"; the summons had to alert the defendant to three facts: 1." - A. `Eisangelia` - B. `Dike` - C. `Graphe` - D. `Prosklesis`
13. Given the definition, what is the correct greek term? "Speechwriters who composed court speeches for litigants." - A. `Polis` - B. `Logographoi` - C. `Nomos/Nomoi` - D. `Hubris`
14. Given the definition, what is the correct greek term? "Judges who heard majority of the private cases brought by means of a dike (except under the jurisdiction of the Archon, Thesmothetai, or some other specialized court)." - A. `Dikastai/dikastes` - B. `The Forty` - C. `Thesmothetai` - D. `Kyrios`
15. Given the definition, what is the correct greek term? "Aristocratic council and court for intentional homicide and other grave offenses." - A. `Boule` - B. `Ekklesia` - C. `Heliaia` - D. `Areopagus`
16. Given the definition, what is the correct greek term? "Judicial sitting of the Athenian assembly or people's court." - A. `The Eleven` - B. `Heliaia` - C. `Nomothetai` - D. `Strategoi`
17. Given the definition, what is the correct greek term? "Types of public cases that volunteer prosecutors could bring, often called "summary procedures."." - A. `Anakrisis` - B. `Apagoge` - C. `Apographe` - D. `Apagoge, ephegesis, endeixis, apographe, eisangelia, probole, dokimasia, euthynai`
18. Given the definition, what is the correct greek term? "Public denunciation procedure used for treason, betrayal, and other injuries to the state." - A. `Dike` - B. `Trauma ek pronoias` - C. `Eisangelia` - D. `Graphe`
19. Given the definition, what is the correct greek term? "Greek city-state understood as a political community, not just a place." - A. `Hubris` - B. `Polis` - C. `Apagoge, ephegesis, endeixis, apographe, eisangelia, probole, dokimasia, euthynai` - D. `Miasma`

20. Given the definition, what is the correct greek term? "Dealt with suits involving kakourgoi and cases that required the defendant to be incarcerated while awaiting trial." - A. `The Forty` - B. `Dikastai/dikastes` - C. `Thesmothetai` - D. `The Eleven`
21. Given the definition, what is the correct greek term? "Greek law or custom; later also written statute." - A. `Polis` - B. `Hubris` - C. `Nomos/Nomoi` - D. `Miasma`
22. Given the definition, what is the correct greek term? "Pre-trial hearing where the magistrate read the complaint and asked for admission or denial." - A. `Apagoge` - B. `Anakrisis` - C. `Paragraphe` - D. `Apographe`
23. Given the definition, what is the correct greek term? "Assembly of Athenian citizens." - A. `Ekklesia` - B. `Heliaia` - C. `Nomothetai` - D. `Strategoi`
24. Given the definition, what is the correct greek term? "Pollution caused by homicide that could spread through the community." - A. `Apagoge, ephegesis, endeixis, apographe, eisangelia, probole, dokimasia, euthynai` - B. `Apagoge` - C. `Miasma` - D. `Anakrisis`
25. Given the definition, what is the correct greek term? "The procedure by which the volunteer prosecutor arrests the defendant first and then brings him to the competent official." - A. `Apagoge` - B. `Paragraphe` - C. `Apographe` - D. `Prosklesis`
26. Given the definition, what is the correct greek term? "Jurors." - A. `Nomos/Nomoi` - B. `Kyrios` - C. `Logographoi` - D. `Dikastai/dikastes`
27. Given the definition, what is the correct greek term? "Officials responsible for many graphe and dike cases." - A. `Kyrios` - B. `Dikastai/dikastes` - C. `Thesmothetai` - D. `Logographoi`
28. Given the definition, what is the correct greek term? "Wounding with intent to kill; deliberate armed battery." - A. `Trauma ek pronoias` - B. `Archon Basileus` - C. `Archon` - D. `Archon Eponymous`
29. Given the definition, what is the correct greek term? "Abusive, arrogant, degrading conduct that could ground prosecution." - A. `Hubris` - B. `Apagoge, ephegesis, endeixis, apographe, eisangelia, probole, dokimasia, euthynai` - C. `Anakrisis` - D. `Miasma`
30. Given the definition, what is the correct greek term? "The procedure by which the volunteer prosecutor lists property that is wrongfully held by the defendant, property that rightfully belongs to the State." - A. `Apographe` - B. `Prosklesis` - C. `Paragraphe` - D. `Eisangelia`

Roman Glossary Drill

1. Given the definition, what is the correct roman term? "Roman magistrate responsible for the judiciary, annual edicts, and legal formulae." - A. `Praetor urbanus` - B. `Praetor` - C. `Praetor peregrinus` - D. `Quaestors`
2. Given the definition, what is the correct roman term? "The assembly compromising all Roman citizens organized into "centuries". It was organized by wealth." - A. `Senatus Consulta` - B. `Plebiscita (singular: plebiscitum )` - C. `Comitia tributa` - D. `Comitia centuriata`
3. Given the definition, what is the correct roman term? "Criminal act; an essential element for a crime in Roman law." - A. `Mens rea` - B. `Actus reus` - C. `Dolus` - D. `Absolvo`
4. Given the definition, what is the correct roman term? "Criminal conduct related to elections

such as bribery and other types of electoral corruption." - A. `Delictum` - B. `Ambitus` - C. `Vis` - D. `Stuprum`

5. Given the definition, what is the correct roman term? "Statutes adopted by the populus romanus; designed to honour the honour the mos maiorum." - A. `Ius honorarium` - B. `Legis actiones` - C. `Leges` - D. `Ius gentium`

6. Given the definition, what is the correct roman term? "An illegal crime which occurred when a man acting sciens dolo malo had sexual relations with a "respectable" unmarried girl or woman or boy." - A. `Delictum` - B. `Stuprum` - C. `Calumnia` - D. `Peculatus`

7. Given the definition, what is the correct roman term? "Magistrate who ran the census and assessed the social and moral standing of Roman citizens." - A. `Praetor urbanus` - B. `Praetor peregrinus` - C. `Censor` - D. `Praetor`

8. Given the definition, what is the correct roman term? "Customs of their (Romans') ancestors." - A. `Mos maiorum` - B. `Paterfamilias` - C. `Interdictio aquae et ignis` - D. `Repetundae`

9. Given the definition, what is the correct roman term? "Veto power used against magistrates of equal or lower status." - A. `Praetor` - B. `Censor` - C. `Intercessio` - D. `Aedile`

10. Given the definition, what is the correct roman term? "A conviction." - A. `Provocatio` - B. `Iudex` - C. `Condemno` - D. `In iure`

11. Given the definition, what is the correct roman term? ""a guilty mind"." - A. `Mens rea` - B. `Condemno` - C. `Absolvo` - D. `Dolus`

12. Given the definition, what is the correct roman term? "Force or violence treated as a public crime, often punished by exile or death." - A. `Peculatus` - B. `Delictum` - C. `Vis` - D. `Stuprum`

13. Given the definition, what is the correct roman term? "The law that resulted from the praetors' edicts. It was used to distinguish law based on the praetor's edict from more formal legislation." - A. `Ius gentium` - B. `Ius honorarium` - C. `Quaestiones perpetuae` - D. `Cognitio extraordinario / Cognitio extra ordinem`

14. Given the definition, what is the correct roman term? "Treason–Maiestas included a number of illegal activities: armed assault on the State; gathering soldiers or conducting warfare without the State's permission; desertion." - A. `Ambitus` - B. `Maiestas` - C. `Vis` - D. `Stuprum`

15. Given the definition, what is the correct roman term? "Praetor who handled disputes involving Roman citizens." - A. `Quaestors` - B. `Praetor peregrinus` - C. `Concilium plebis` - D. `Praetor urbanus`

16. Given the definition, what is the correct roman term? "Literally, "law of the peoples/nations". The praetor peregrinus used this law between a Roman citizen and a foreigner or between two foreigners who were involved in a dispute on Roman soil." - A. `Ius gentium` - B. `Lex Calpurnia` - C. `Quaestiones perpetuae` - D. `Cognitio extraordinario / Cognitio extra ordinem`

17. Given the definition, what is the correct roman term? "Financial officials." - A. `Comitia tributa` - B. `Quaestors` - C. `Concilium plebis` - D. `Comitia centuriata`

18. Given the definition, what is the correct roman term? "Roman magistrate who supervised archives, public works, streets, and the marketplace." - A. `Praetor urbanus` - B. `Praetor` - C. `Censor` - D. `Aedile`

19. Given the definition, what is the correct roman term? "Bringing false criminal charges as an accuser." - A. `Lex Iulia de adulteriis coercendis` - B. `Calumnia` - C. `Mens rea` - D. `Actus reus`

20. Given the definition, what is the correct roman term? "Advice or resolutions issued by the Senate." - A. `Leges` - B. `Senatus Consulta` - C. `Imperium` - D. `Legis actiones`

21. Given the definition, what is the correct roman term? "Enactments of the concilium plebis that became binding on all Rome after the lex Hortensia." - A. `Senatus Consulta` - B. `Plebiscita (singular: plebiscitum )` - C. `Leges` - D. `Imperium`

22. Given the definition, what is the correct roman term? "Plebiscite governing wrongful damage to property, especially injury to another person's slaves or animals." - A. `Interdictio aquae et ignis` - B. `Lex Aquilia` - C. `Paterfamilias` - D. `Mos maiorum`

23. Given the definition, what is the correct roman term? "Provincial extortion and abuse of office for private gain." - A. `Vis` - B. `Repetundae` - C. `Ambitus` - D. `Maiestas`

24. Given the definition, what is the correct roman term? "Law of 149 BCE that created the first permanent jury court and helped launch the quaestiones perpetuae." - A. `Mos maiorum` - B. `Lex Hortensia` - C. `Lex Aquilia` - D. `Lex Calpurnia`

25. Given the definition, what is the correct roman term? "Law of 287 BCE making plebiscites binding on all Roman citizens." - A. `Paterfamilias` - B. `Mos maiorum` - C. `Lex Aquilia` - D. `Lex Hortensia`

26. Given the definition, what is the correct roman term? "An assembly of all plebeians organized by tribe and presided over by the tribunes of the plebs." - A. `Comitia tributa` - B. `Plebiscita (singular: plebiscitum )` - C. `Comitia centuriata` - D. `Concilium plebis`

27. Given the definition, what is the correct roman term? "Right to appeal a magistrate's summary judgment to the Roman people." - A. `Censor` - B. `Aedile` - C. `Provocatio` - D. `Intercessio`

28. Given the definition, what is the correct roman term? "The father of the family; the head of the household." - A. `Paterfamilias` - B. `Maiestas` - C. `Interdictio aquae et ignis` - D. `Repetundae`

29. Given the definition, what is the correct roman term? "Augustan law punishing adultery and giving the paterfamilias limited rights in flagrante delicto." - A. `Lex Iulia de adulteriis coercendis` - B. `Actus reus` - C. `Dolus` - D. `Mens rea`

30. Given the definition, what is the correct roman term? "Acquittal." - A. `Absolvo` - B. `In iure` - C. `Iudex` - D. `Condemno`

31. Given the definition, what is the correct roman term? "Praetor who handled disputes involving foreigners." - A. `Praetor peregrinus` - B. `Comitia centuriata` - C. `Concilium plebis` - D. `Quaestors`

32. Given the definition, what is the correct roman term? "Permanent Roman criminal courts for recurring categories of public wrong." - A. `Lex Calpurnia` - B. `Lex Aquilia` - C. `Quaestiones perpetuae` - D. `Lex Hortensia`

33. Given the definition, what is the correct roman term? "A kind of embezzlement; any wrongful appropriation, diversion, or conversion of sacred, religious, or public funds." - A. `Actus reus`

- B. `Peculatus` - C. `Lex Iulia de adulteriis coercendis` - D. `Calumnia`

34. Given the definition, what is the correct roman term? "Crime or unintentional tort." - A. `Delictum` - B. `Calumnia` - C. `Peculatus` - D. `Lex Iulia de adulteriis coercendis`
35. Given the definition, what is the correct roman term? "The first phase of Roman procedure, conducted before the praetor." - A. `Provocatio` - B. `Intercessio` - C. `In iure` - D. `Iudex`
36. Given the definition, what is the correct roman term? "Latin for "judge". One of the most important officials involved in the development of the legis actiones system." - A. `Provocatio` - B. `Intercessio` - C. `Iudex` - D. `Aedile`
37. Given the definition, what is the correct roman term? "Extraordinary post-classical procedure in which one official heard the whole case instead of splitting it into separate phases." - A. `Cognitio extraordinario / Cognitio extra ordinem` - B. `Lex Hortensia` - C. `Lex Calpurnia` - D. `Quaestiones perpetuae`
38. Given the definition, what is the correct roman term? "The early form of civil procedure; "suits/actions of law"." - A. `Cognitio extraordinario / Cognitio extra ordinem` - B. `Legis actiones` - C. `Ius gentium` - D. `Ius honorarium`
39. Given the definition, what is the correct roman term? "Banishment/exile; literally "prohibition of water and fire"." - A. `Ambitus` - B. `Interdictio aquae et ignis` - C. `Repetundae` - D. `Maiestas`
40. Given the definition, what is the correct roman term? "The comitia tributa was organized by the location of residence and they vote in an order determined by lot." - A. `Senatus Consulta` - B. `Plebiscita (singular: plebiscitum )` - C. `Imperium` - D. `Comitia tributa`
41. Given the definition, what is the correct roman term? "Criminal intent." - A. `Dolus` - B. `Absolvo` - C. `Condemno` - D. `In iure`
42. Given the definition, what is the correct roman term? "The power to command held by senior Roman magistrates." - A. `Imperium` - B. `Legis actiones` - C. `Ius honorarium` - D. `Leges`

Glossary Drill Answer Key

Greek

1. A. `Archon Eponymous`
2. B. `Kyrios`
3. A. `Boule`
4. A. `Dike`
5. D. `Nomothetai`
6. C. `Strategoi`
7. B. `Archon`
8. A. `Paragraphe`
9. C. `Archon Basileus`

10. B. `Graphe`
11. B. `Archon Polemarchus`
12. D. `Prosklesis`
13. B. `Logographoi`
14. B. `The Forty`
15. D. `Areopagus`
16. B. `Heliaia`
17. D. `Apagoge, ephegesis, endeixis, apographe, eisangelia, probole, dokimasia, euthynai`
18. C. `Eisangelia`
19. B. `Polis`
20. D. `The Eleven`
21. C. `Nomos/Nomoi`
22. B. `Anakrisis`
23. A. `Ekklesia`
24. C. `Miasma`
25. A. `Apagoge`
26. D. `Dikastai/dikastes`
27. C. `Thesmothetai`
28. A. `Trauma ek pronoias`
29. A. `Hubris`
30. A. `Apographe`

Roman

1. B. `Praetor`
2. D. `Comitia centuriata`
3. B. `Actus reus`
4. B. `Ambitus`
5. C. `Leges`
6. B. `Stuprum`
7. C. `Censor`
8. A. `Mos maiorum`

9. C. Intercessio
10. C. Condemno
11. A. Mens rea
12. C. Vis
13. B. Ius honorarium
14. B. Maiestas
15. D. Praetor urbanus
16. A. Ius gentium
17. B. Quaestors
18. D. Aedile
19. B. Calumnia
20. B. Senatus Consulta
21. B. Plebiscita (singular: plebiscitum)
22. B. Lex Aquilia
23. B. Repetundae
24. D. Lex Calpurnia
25. D. Lex Hortensia
26. D. Concilium plebis
27. C. Provocatio
28. A. Paterfamilias
29. A. Lex Iulia de adulteriis coercendis
30. A. Absolvo
31. A. Praetor peregrinus
32. C. Quaestiones perpetuae
33. B. Peculatus
34. A. Delictum
35. C. In iure
36. C. Iudex
37. A. Cognitio extraordinario / Cognitio extra ordinem
38. B. Legis actiones
39. B. Interdictio aquae et ignis

40. D. `Comitia tributa`
41. A. `Dolus`
42. A. `Imperium`